

Musical Chairs: Frequent Judge Transfers Undermine Court Productivity in India*

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Draft. Comments welcome!

Abstract

In many parts of the world, judges are transferred frequently. We argue that transfers undermine court productivity. We test this proposition using big data from the courts of first instance in India, where more than 40 million cases are pending, and a research design that leverages transfers due to judge retirements at precisely the age of 60. The data suggest that judge transfers are frequent and often occur in a formulaic manner to prevent the politicized assignment of judges to courtrooms. Transfers reduce court productivity, both because they create court vacancies and because portions of cases that experience judge transfers are reheard. Transfers are a major, unappreciated cause of judicial delays. We demonstrate how a common and frequently well-intentioned practice—the periodic transfer of personnel—can undermine productivity.

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In many parts of the world, particularly in the Global South, court cases can take years—sometimes decades—to conclude, leading to severe court congestion. Case delays are normatively problematic and undermine the rule of law, human rights, and economic development (Voigt 2016). In this paper, we argue and show that a major cause of case delays is the frequent transfer or reassignment of judges across courtrooms. Frequent judge transfers are relatively common across the world, and their negative effects could obtain in countries as diverse as China (Zhu 2024), Japan (Foote 2017), Kenya (Orina 2016), Mexico (Brassiolo et al. 2021), Italy (Guerra and Tagliapietra 2017), Spain (Rosales-López 2008) and even the United States (Paschal 1948).¹

We theorize that judge transfers worsen court productivity. Judge transfers are likely to cause case delays as they increase the odds of cases being temporarily unassigned to any judge, and as new judges rehear portions of cases before they come to a decision. Transfers might have particularly deleterious effects in the Global South, where judges drive the disposition of cases, typically unconstrained by juries.

We investigate these issues in the context of India’s “subordinate” or lower judiciary, which are the courts of first instance for 1.4 billion people.² India is a particularly useful case to study because its judicial system, modeled on Britain’s and based in common law, is akin to many systems across the developing world. Alarmingly, India’s lower judiciary suffers from an increasing backlog of over 40 million cases, over 40% of which have been pending for more than 3 years. This is even though Indians file among the *fewest* cases per person per year, considerably fewer than people in the United States, United Kingdom, Korea, Japan, and Malaysia (Galanter 2009). What accounts for these patterns, and what can be done to increase access to justice?

To test our theory, we leverage new “big data” on India’s judges and millions of court cases, paired with research designs that enable causal inference. We find that judges in India are frequently

¹ For example, judges in North Carolina’s superior courts are rotated once every six months, as mandated in the state constitution. In 1914, the Chief Judge of the state argued that the “system of rotation judges is utterly indefensible. It is antiquated, expensive to the public and to the judges, and illogical in every respect. It is the chief cause of the delays and evils in our State judicial system” (Paschal 1948, 181).

² These courts also hear some appeals.

transferred or reassigned between courtrooms. Our reading of judge transfer rules, interviews with judges, and data analysis suggest that a major and surprising cause of frequent judge transfers is the court's adherence to a seniority norm, designed to depoliticize the assignment of judges to courtrooms. This norm causes judges to be rematched to courtrooms based on their seniority every time a judge enters or leaves a court (courtrooms are nested within courts), setting off a chain reaction of collateral transfers. Partly as a result of this, judges in Uttar Pradesh—India's most populous state and the focus of much of our analysis—are transferred once every 10 months.

We find that judge transfers worsen court productivity, wherein the average judge transfer out of a court causes the court to issue 32 fewer decisions—the equivalent of 0.7 months of lost productivity—in the five months after the transfer. This result obtains because transfers cause courts to be vacant or without judges for some time, and because new judges frequently rehear portions of cases that they inherit.

Our theory and data also allow us to speak to how the negative effects of transfers can be attenuated. We show that mass or batch transfers of judges are particularly disruptive to judicial decision-making, even as bail cases—which have to be resolved quickly—are less likely to be slowed by transfers. These results suggest that distributing transfers over time and rules for the time-bound disposal of cases could reduce the disruptive effects of transfers.

We contribute to three broad literatures in the social sciences. The first, which straddles the social sciences, examines court efficiency and largely focuses on developed countries. This literature typically examines the effects of straightforward factors such as the number of courtrooms, judges, incentives, technology, and case complexity on judicial decision-making (Ramseyer 2012; Voigt 2016). We take this literature in a new direction by arguing that seemingly innocuous and well-intentioned judge staffing decisions can also shape judge productivity.³

A second literature to which this project contributes is on the political economy of the

³ In related work in economics, Grajzl and Silwal (2020) study the effect of “multi-court” judging in Nepal. Other works that also examine how extraneous factors such as lunchtime and temperatures affect decisions include Chen et al. (2016); Heyes and Saberian (2019); Danziger et al. (2011).

bureaucracy in the global South. The literature on state capacity, which examines the conditions under which states invest in the bureaucracy, largely focuses on the effects of exogenous factors such as wars (Tilly 1990; Dincecco et al. 2022) and geography (Herbst 2000) on state-making. Newer works examine the effects of more endogenous factors such as the extension of the franchise (Suryanarayan and White 2021), bureaucratic embeddedness (Bhavnani and Lee 2018; Xu and Burgess 2023), identity and affirmative action (Bhavnani and Lee 2021; Ding et al. 2021), and politician-bureaucrat interactions (Bhavnani et al. 2024; Purohit 2024) on bureaucratic performance. We further this literature by examining the political economy of *judge* transfers, thereby extending the study of the bureaucracy to an understudied arm of the state: the judiciary. As we discuss below, our analysis shows how a frequently used strategy to improve bureaucratic functioning—the transfer of bureaucrats—can have negative effects.

As we show below, a major contribution of this project is to bring the two literatures above—on judicial efficiency on the one hand, and bureaucracy on the other—into conversation with one another. In doing so, we can examine the effects of the judicial bureaucracy on decision-making in India.

A third, smaller literature that this project deepens is the political science and economics work on the Indian judicial system (see Muralidharan 2024 for a recent synthesis). These works have largely focused on the developmental effects of judicial delays (Chemin 2009, 2012; Rao 2024), arguing that these undermine relational contracting and access to credit. A smaller strand has focused on the important issue of judicial bias (Ash et al. 2025; Jassal 2024) and the effects of religiosity and religious riots (Bharti and Roy 2023; Mehmood et al. 2023), temperature (Craigie et al. 2023), the media (Vasishth 2022), and legal aid (Bharti and Lehne 2024) on judicial decision-making.⁴ One paper has focused on the question of judicial independence (of the upper judiciary; see Aney et al. 2021), and no works we know of focus on the determinants of judicial efficiency. The latter is a pressing concern, as the country’s lower judiciary has an extraordinarily high pendency despite having few case filings relative to the population.

⁴ For a newer agenda on access to justice, see Bhogale (2025a,b).

1 Theoretical Framework

To theorize about the consequences of frequent judicial transfers, we start by defining judge transfers as any staffing decision that results in changes in the assignment of judges to courtrooms. Transfers could occur due to judge promotions, retirements, or other reasons. In most contexts, senior judges, bureaucrats and/or politicians are responsible for judge transfers (Malleson and Russell 2006).

Judge transfers are usually subject to formal and informal rules, designed to insulate judges from political pressure while ensuring the efficient and equitable development and allocation of talent. Many bureaucracies follow two dictates in this regard. The first is that individuals, in this case judges, cannot be assigned to the regions they are from, to prevent nepotism. The second is that judges are transferred periodically to develop their skills, reduce corruption, and increase judicial independence. Indeed, these are the standard rationales for transfers outlined in bureaucratic manuals and studies of public administration (Iyer and Mani 2012; Northcote and Trevelyan 1854). The idea is that a lack of corruption and impartiality is ensured when state employees do not serve in the place of origin, or that they have close ties to, and that frequent transfers ensure that these ties are largely absent. In this paper, we focus on studying the *costs* of transfers, and leave it to other work to document their *benefits*.

To theorize about the efficiency costs of judge transfers, we consider their effects at the courtroom and case levels. When judges are transferred out of a courtroom, undecided cases remain in the original courtroom. The courtroom may remain vacant for a while before being assigned a new judge. Transfers are more likely to cause judge vacancies since not all transfers out of or away from a courtroom, particularly ones carried out at short notice, can immediately be met with simultaneous transfers into that courtroom. Replacement judges might not be available or might simply take some time to report for duty. This pattern of transfers causing vacancies has been noticed in Italy (Guerra and Tagliapietra 2017). A vacant court, of course, cannot issue decisions. Transfers, therefore, reduce courtroom productivity. Cases that are unassigned to judges are less likely to be

decided.

A second reason that transfers reduce court productivity and decrease the chances a case will be decided is that judges' ability to be productive will be temporarily attenuated after transfers. New judges will take time to adjust to their new caseload and staff (see also Grajzl and Silwal 2020), slowing proceedings in the new courtroom for some time after the transfer. Additionally, new judges may require portions of inherited cases to be reheard as they familiarize themselves with old matters, particularly if the written record is unclear or if judges prefer to personally examine witnesses and lawyers.

In theory, transfers could have an anticipatory effect, even before they occur. Much as term limits are thought to undermine leader incentives, judges faced with an impending transfer could face the temptation to leave cases for the next judge. Judges who know that they are about to be transferred will also spend time preparing for their relocation, which will undermine their productivity. On the other hand, impending transfers could also cause judges to speed up the disposal of some cases, such as those for which hearings have been completed and the court has yet to issue a decision. As we describe below, we do not expect either anticipation effect to obtain in the Indian context because transfers are typically announced very soon (two to four weeks) before they are effectuated, and since the annual reviews that India's judges are subjected to incentivize judges to be as productive as possible.

Having theorized about the possible effects of transfers on judge decision-making, we also consider ways to attenuate these effects.

One way to reduce the negative effects of transfers would be to better stagger them through the year. For reasons of administrative convenience, bureaucracies tend to process transfers in large batches at particular times of the year. We argue that mass transfers are more likely to be disruptive to court productivity than staggered transfers for two related reasons. First, mass transfers will be more likely to cause judge vacancies since the entire transfer "chain" can be disrupted if a single judge delays their move. Second, batch transfers might result in more hearings because the

simultaneous change of lots of judges in a court is more likely to overwhelm the administrative staff, which might cause more hearings. A few, staggered transfers are less likely to have this effect.

A second way to reduce the effects of transfers is to ensure that cases are decided quickly. Indeed, most judicial systems are able to decide some cases—such as bail cases—quickly. Quick disposal rates ensure that fewer cases are “at risk” of being subjected to judge transfers since they will be decided and therefore exit the court system speedily. This reasoning is not tautological. It is not that quick disposal rates cause quick disposals. Rather, it is that a quicker process ensures that fewer cases bear the brunt of the negative effects of transfers.

Having outlined our theoretical expectations about the consequences of judicial transfers for court productivity and possible ways to reduce the costs of transfers, we highlight why India is a good case to study and note some of its relevant characteristics.

2 India’s Lower Judiciary: Massive Judicial Delays Despite Few Case Filings

India’s legal system is based on common law and was inherited mainly from the British. In this respect, it is similar to the legal systems of more than 40 other common law countries and many more countries with mixed legal systems (Kritzer 2002), several of which also suffer from judicial delays (Dakolias 2014). The Indian judicial system is also relatively open, in that rich data on its courts are posted online. As such, studying the Indian judicial system is possible, and insights from such studies could apply to other developing countries with common law systems and judicial delays.

The Indian judiciary is made up of the upper (the Supreme Court of India and the country’s 25 High Courts—these are constitutional courts) and the lower judiciary (there are over 14,000 of these courts of first instance). Case pendency is high across the judiciary and is among the worst in the world. The lower courts—the focus of our study—account for most pending cases. Despite being a federal country, India’s judicial system is unitary in that it applies and interprets the country’s federal and state laws to the cases before it.

India's courts are staffed by professional judges who are (with some exceptions) generalists, that is, they largely do not specialize in adjudicating specific matters (except for most but not all tax matters, which separate revenue courts handle). Therefore, judges of the same level of seniority can be transferred at will because their skill sets are comparable. In the lower judiciary, judges sit singly (rather than in benches with multiple judges) to decide cases.

The country's lower courts are created by state governments, and they are staffed by judges recruited directly from law schools or the State Bar Associations using meritocratic selection procedures, including exams and interviews. The lower judiciary has a lot of judge vacancies, with approximately 25% or 5,000 positions vacant. Once recruited, judge promotions and transfers across and within India's administrative districts occur at the behest of "collegiums" of up to three of the senior-most judges in the state High Courts (the equivalent of US Circuit Courts), with inputs from the senior-most judges in each district. Although state and national level politicians have no *de jure* role in this process, a political economy approach suggests that there could be unofficial channels of influence. We return to this issue later.

Judges in India's lower courts are evaluated annually using Annual Confidential Reports. Although the precise rubric for these evaluations varies by state, all evaluation systems place great weight on the number of decisions issued (Deva Rao et al. 2018). The evaluation system has been criticized for emphasizing quantity over quality (Gupta and Bolia 2024).

Judge transfers are supposed to occur based on staffing needs, subject to rules and norms designed to ensure the even development and application of talent across space and a lack of corruption. To these ends, judges are not allowed to work in their home districts, and cross-district judge transfers are mandated every three years. In subsequent sections, we describe how transfers operate in practice, showing that there are many more transfers than mandated. We then turn to estimating the costs of judge transfers.

3 Research Designs and Big Data

To examine the degree to which judge transfers slow decision-making, we conduct analyses at the courtroom and case levels. At the courtroom level, we draw on a panel dataset of 2,579 courtrooms observed monthly between 2015 and end-2018 to model our main outcome of interest—the number of decisions issued by a courtroom in a month-year—as a function of transfers and its leads and lags.

A standard analysis of the courtroom-month panel dataset would estimate the following two-way fixed effects equation.

$$Y_{ct} = \alpha + \beta Transfers_{ct} + \delta_c + \gamma_t + \epsilon_{ct} \quad (1)$$

wherein the outcomes (the number of decisions and court vacancies) for a courtroom c in month t are modeled as a function of transfers ($Transfers_{ct}$) and courtroom (δ_c) and month-year (γ_t) fixed effects. Standard errors are clustered at the courtroom level. A recent literature suggests that the two-way fixed effects estimator is problematic if treatments are staggered and effects are heterogeneous across units or over time (Goodman-Bacon 2021; De Chaisemartin and d’Haultfoeuille 2020). We therefore use the dynamic difference-in-difference estimator due to De Chaisemartin and d’Haultfoeuille (2024). This estimator is robust to heterogeneous effects and is well-suited to cases such as ours, where the treatment is binary and turns on for one period at a time (in other words, it is non-absorbing).⁵ It compares switchers (courtrooms where the treatment changes) and nonswitchers (courtrooms where the treatment remains the same) with the same baseline treatment, and allows for dynamic effects.

For our case-level analysis, we turn to our dataset of the over 6 million cases filed in Uttar Pradesh between 2015 and 2018, and estimate the following equation using fixed effects linear probability model.

$$Y_{ir} = \alpha + \beta Transfers_{ir} + \gamma X_{ir} + \delta_c * \zeta_r + \eta_t + \epsilon_{ir} \quad (2)$$

⁵ Other new estimators, such as due to Callaway and Sant’Anna (2021) and Sun and Abraham (2021) are for absorbing treatments and therefore cannot be used here.

This equation relates our outcome variables (an indicator for whether a case i in courtroom r is decided by end-2021, and the number of hearings and spells for which the case was unassigned to a judge) to the number of transfers ($Transfers_{ir}$) experienced by the case, controlling for a vector of case-specific controls (X_{ir}), filing month-year fixed effects (η_t), and case type (δ_c)⁶ and courtroom (ζ_r) fixed effects and their interactions. Case-specific controls are indicators for the acts under which cases are filed, variables for the number of acts and sections to which cases refer, and indicators for the gender of the parties and whether they are the government. Standard errors are clustered at the courtroom-case type level.

We code a courtroom as experiencing a judge transfer if the judge assigned to it is moved out. As we will describe later, such judge reassignments could be prompted by various factors, including the rule that judges are to be transferred across districts once every three years, judge promotions, and retirements. When court cases are filed, the court administration or registrar assigns them to courtrooms in an arbitrary manner (Ash et al. 2025; Rao 2024), where they typically stay until decided. A court case is therefore coded as experiencing a judge transfer when a judge assigned to its courtroom is moved out. Since courtrooms often experience several judge transfers over time, the key independent variable for our case-level analysis is the count of all such judge reassignments.

Although our selection-on-observables strategies for the courtroom and case-level analyses control for a wide range of confounds, unobserved confounding could still theoretically bias the estimated effects of transfers. To better isolate the causal effect of judge transfers, for both the courtroom and case-level analyses, we focus on transfers due to retirements. The courts we study have a mandatory judge retirement age of 60, and judges do in fact retire the day they turn 60. This renders the assignment of these transfers plausibly exogenous to courtrooms and cases, which allows us to more credibly estimate the causal effect of transfers.

We draw on two datasets from Uttar Pradesh, India’s largest state with a population of over 240 million, for our analyses. These were created by scraping judge and case data from the country’s

⁶ We code cases as falling into four mutually exclusive, collectively exhaustive types: civil cases, criminal cases, bail cases and other cases. See Appendix A for coding rules.

eCourts platform (since around 2006, India’s courts have been required to upload a range of data to this website), and from the websites of the Allahabad (that is, Uttar Pradesh) High Court and district courts.⁷ Dataset construction details are provided in Appendix A.

The first, courtroom-month panel dataset describes courtroom productivity and judge transfers across 2,576 courtrooms between January 2015 and December 2018. In Appendix Figure 5, we graphically depict the substantial variation in treatment (that is, transfer) timing across courtrooms. A courtroom is the specific room in a court, which is in a court complex, where a single judge presides and cases are heard. Court complexes typically contain several courts, which are in turn composed of courtrooms at the same level. For instance, our dataset contains an observation for courtroom number 2, at the Civil Judge Junior Division Level or court, in the Bahraich District Court Complex. 2,706 judges served in Uttar Pradesh’s courtrooms in the lower judiciary in the period under study. These data are summarized in Appendix Table 9.

The second, case-level dataset provides details on over 6 million cases filed in Uttar Pradesh’s lower judiciary between 2015 and 2018. The dataset allows us to thickly describe each case, including the courtroom to which it was assigned, its type (civil, criminal, bail, etc.), the acts and sections that the case was filed under, and the identities of the petitioners and respondents. The data also allow us to document whether the case was decided or pending as of end-2021. These data are summarized in Appendix Table 10.

We enrich our understanding of these big datasets through interviews with India’s lower court judges, and by engaging with limited discussions of the issue in the press and in judicial decisions.

4 Transfers are Frequent

In this section, we provide the first systematic documentation of judge transfers in India. To explore the causes of frequent judge transfers, we familiarized ourselves with the official

⁷ To scrape the case-level data, we relied on the listing of the over 6 million cases filed between 2015 and 2018 in Uttar Pradesh provided in Ash et al. (2025). Our new scrape yielded fields absent in the public release of the original dataset, including the courtrooms associated with the case, and an indicator for whether a case was decided by the end of 2021. We focus on cases filed from 2015 on, when the judge transfer data are consistently reported.

documentation and secondary literature on the issue, supplemented with interviews with judges. In two empirical exercises, we also look for and fail to find systematic evidence for the politicization of judge transfers. Ironically, we find that a major cause of transfers is the judicial system's attempts to ward off the politicization of judge transfers via a seniority rule used to match judges to courtrooms. This rule results in frequent, rule-based transfers. We use this section to describe our treatment of interest, transfers, and motivate our identification strategy, which focuses on transfers due to judge retirements.

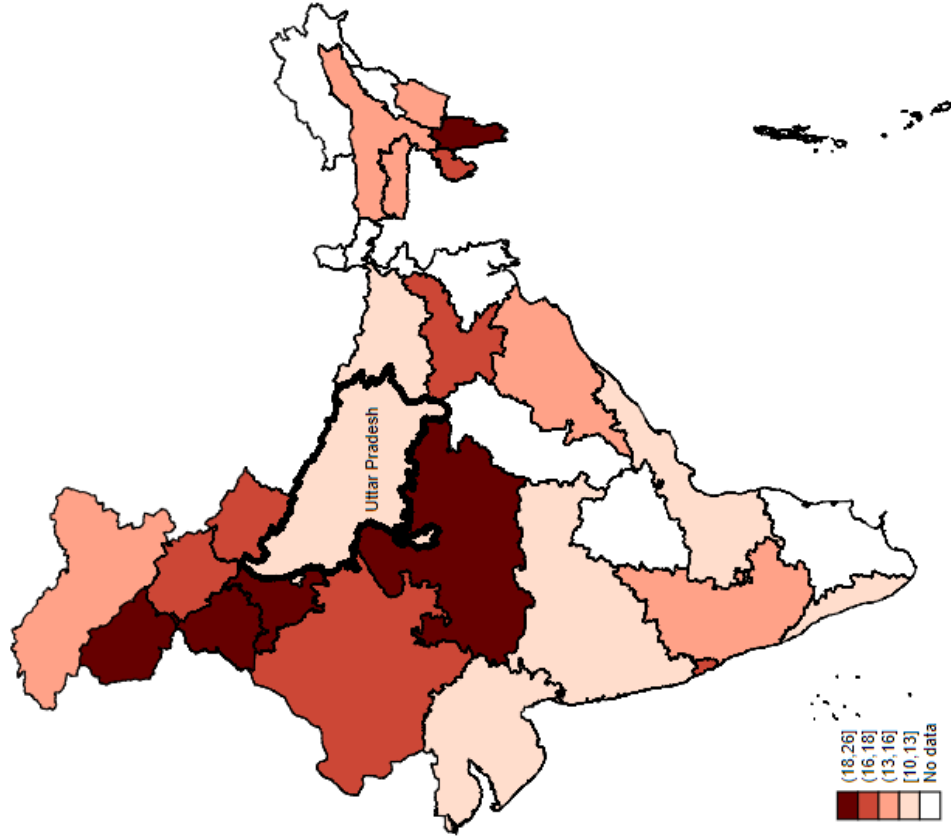
Our data suggest that judicial transfers are frequent. Across India, judges are transferred across positions once every 16 months. Figure 1 maps the cross- and within-state district variation in judges' time in their postings. It reveals that there is substantial cross and within-state variation in judge transfers. For example, judges in Uttar Pradesh and Gujarat spend an average of 10 months in their positions, even as judges in Chhattisgarh, Punjab, and Haryana are in their positions for more than two years. Strikingly, the variation within states is also substantial, with judges in Uttar Pradesh—the state that is the focus of our analyses—spending 8 to 17 months in their positions. To our knowledge, this is the first systematic documentation of the frequency of transfers of lower court judges in India and its spatial variation.

Our courtroom-month data for Uttar Pradesh also allows us to describe the *types* of judge transfers in some detail. While the coding of some transfer types is exact, others are based on informed guesstimates. See Appendix A for details. In our data, 21% of judges are transferred across districts. A clear set of rules mandates cross-district transfers every three years (in fact, judges spend an average of 2.3 years in districts; we discuss possible reasons why this is lower than the mandated 3-year term below), and that when judges are transferred, they are moved to non-contiguous districts in a separate zone (the state is divided into zones by an Administrative Committee). Judges are also prohibited from serving in their home districts.

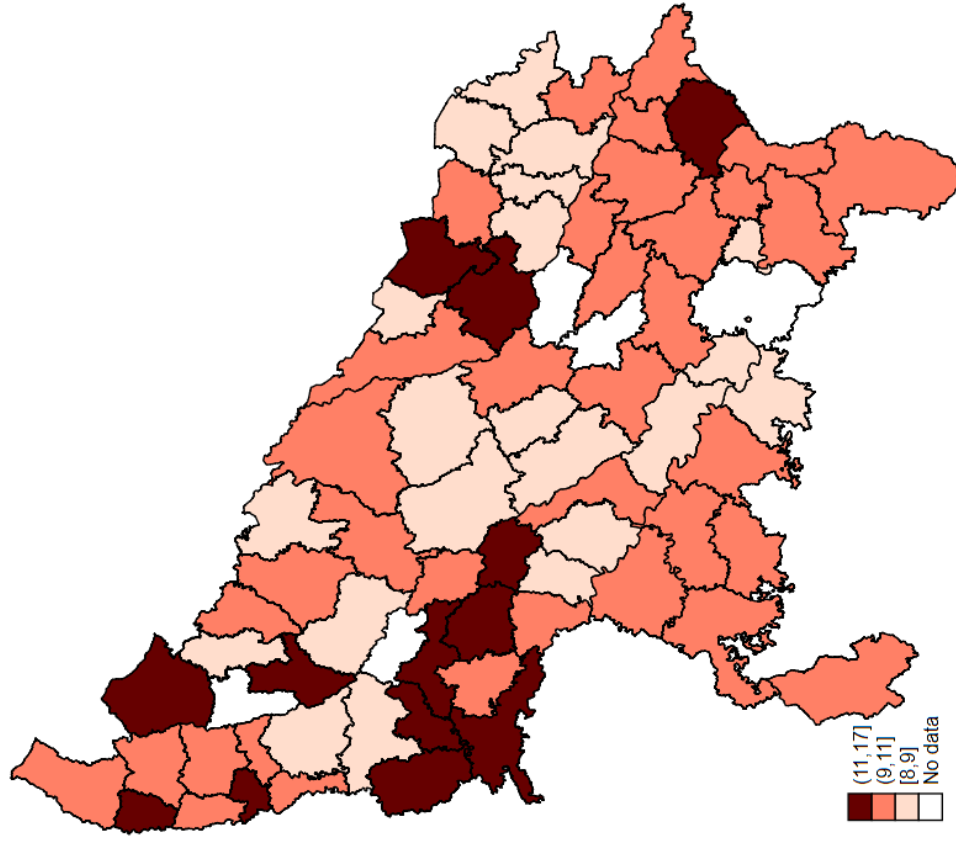
A further 6% of transfers are due to judge promotions within districts. These occur approximately five and ten years into the judge careers, respectively. At the five-year mark, judges

Figure 1. Average months judges spend in their postings by district

(a) India



(b) Uttar Pradesh



Source: Own calculations, based on new judge data scraped from the e-Courts website.

are promoted from the junior to the senior division. At the ten-year mark, they are promoted from the senior division to the “district and sessions judge” level. An additional 3% of total transfers are due to retirements, which occur precisely at the age of 60. As discussed, we leverage the latter rule to help identify the causal effects of transfers. We estimate an additional 7% of transfers occur across courtrooms within districts for administrative reasons, to meet the needs of local courts and to ensure the professional development of judges.

By our calculations, the largest category ($\approx 64\%$) of transfers are “collateral transfers,” prompted by the strict recruitment date-based seniority system followed by the Uttar Pradesh judiciary. This operates as follows. When a judge transfer creates a vacancy in a courtroom, the next most senior judge (that is, the earliest-recruited judge with the same rank) in that court will be moved to the vacant courtroom. This will then create yet another vacancy, which the second next most senior judge will be moved to fill, and so forth. For instance, when Judge Aftab Alam Khan retired in 2018 from courtroom 2 of the District and Sessions Court (D&S) in Barabanki District Court Complex, the courtroom was assigned to Pankaj Kumar Upadhyay, who earlier held charge of Courtroom 32 of the D&S court. Courtroom 32 got assigned to Anupama Nigam as an additional charge, who then manages the workload of both courtroom 32 and courtroom 5.⁸ The seniority system magnifies the effects of transfers by prompting collateral or cascading transfers in their wake. This is apparent in our data, which, for example, suggests that although only 3% of judge transfers are due to retirements, 8.8% are due to the collateral effects of retirements. Consistent with this, retirements lead to more cascading transfers in courts with more courtrooms.

A substantial literature in the Global South (Agnihotri et al. 2024; Brierley 2020; Wade 1982) describes how bureaucrats are frequently transferred at the behest of politicians. Such politicization is likely to exist with regard to lower court judges in our context as judge transfers occur at the behest of senior High Court (the Indian equivalent of US Circuit court) judges, rather than politicians, and since many transfers in fact occur due to the seniority system, which allows for little discretion in

⁸ Moog (1994, 24) observed the operation of this system in the 1980s, remarking that “This occurred in Varanasi District when the civil judge received a promotion to additional district judge and was transferred to another district. The first additional civil judge became a civil judge, and all the other additional civil judges moved up one position.”

judge assignments.

That said, under conditions of “perverse accountability,” rent-seeking politicians might pressure senior judges to transfer junior judges to influence them. While we suspect that the occasional judge transfer is in fact initiated at the prompting of politicians, our large- n analyses of judges described below fail to yield systematic evidence in favor of politicization. In the rest of this section, we summarize our efforts to explore the possibility that judge transfers are in fact politicized.

First, we take a decomposition of variance approach, originally developed in the economics literature to estimate the effect of teachers and managers (Bertrand and Schoar 2003; Rockoff 2004), to parse the contribution of various factors in explaining judge transfers across space and time. To implement this, we leverage the courtroom-month dataset introduced previously, and model judge transfers as a function of politician, judge, court type, and month-year fixed effects. The null hypothesis—that judge transfers are not politicized—suggests that we should be unable to reject the test of the joint significance of politician fixed effects, and further that politician fixed effects should not explain much of the residual variation in judge transfers.

Our analysis—presented in Appendix Table 11—provides weak evidence in favor of the politicization of transfers. While we are unable to reject the joint significance test of politician fixed effects, the F -stat is very low (1.85), particularly given that we have over 80,000 courtroom-month observations. Moreover, politician fixed effects jointly explain less than 1% of the variation in judge transfers. Consistent with our identification strategy, which leverages retirement transfers, these numbers are even lower (the F -stat is one and the variation explained is zero) for transfers due to retirements.

Second, we leverage data on judge transfers across courtrooms between 2015 and 2018 to examine whether changes in politician characteristics due to elections are associated with changes in judge transfers. In particular, we note that two subsets of politicians will be particularly likely to influence judge transfers. First, politicians from the ruling party (that is, the party with a legislative majority; this was the Samajwadi Party until March 2017 and the Bharatiya Janata Party thereafter)

are likely to be able to influence judge transfers via pressuring the senior judges responsible for judge transfers directly, or indirectly via their influence over the executive. Second, politicians charged with crimes might be particularly keen on transferring judges to obtain favorable judicial outcomes for their cronies or themselves. Politicians might seek the transfer of judges who are assigned to hear their cases, to delay decision-making and/or ensure favorable judicial outcomes (Poblete-Cazenave 2025). Alternatively, if politicians charged with crimes increase criminality more generally because of demonstration effects or because they run criminal enterprises (Prakash et al. 2024), they might seek the transfer of judges in their districts, whether they are assigned to hear their specific cases or not.

This analysis, too, fails to yield clear evidence that judge transfers are politicized along the lines theorized above. To start with, take the hypothesis that ruling party politicians are more likely to be able to transfer judges. A regression discontinuity analysis using close elections between ruling party and opposition politicians fails to suggest that ruling party politicians cause more transfers (see the left-hand panel of Appendix Figure 6).⁹ A second discontinuity analysis of close elections between politicians charged with crimes and others also fails to suggest that criminality causes greater transfers (middle panel). Lastly, a regression discontinuity analysis of close elections between ruling party politicians charged with crimes and others also yields insignificant results (see the last panel of Appendix Figure 6).

In sum, two systematic analyses of judge transfers—a decomposition of variance analysis, and examinations of the hypotheses that ruling party and criminal politicians are more likely to transfer judges using the regression discontinuity estimator—fail to provide systematic evidence of the politicization of judge transfers. In other words, while we are unable to rule out the possibility that the occasional judge transfer is in fact politicized, judge transfers in general do not appear to be shaped by politics. This is consistent with the fact that collateral and retirement transfers, which together account for an estimated 70% of transfers, occur based on rules and are therefore

⁹ To assign courtrooms to single member districts or constituencies and their politicians, we use data on case origins. So if a courtroom mostly hears cases from a constituency, data on politicians from that constituency will be matched to that courtroom.

depoliticized. Importantly, judge transfers in this context are different from bureaucratic transfers in important ways. Government ministers have direct influence on bureaucrats since bureaucrats have strong preferences over positions, particularly close to their home town. Politicians exploit these preferences, using them as carrots (as a return for loyalty) and as sticks (to induce compliance) (Agnihotri et al. 2024): they can remove bureaucrats from a geographic position and assign them to a new geographic position.

On the other hand, politicians' ability to influence judge transfers is more constrained, because these might be more scrutinized, and difficult to precisely carry out. While politicians may be able to influence Administrative judges in the High Court (those with the power to transfer judges), at best, they can determine whether a judge is removed out of a position (as a punishment for an unfavourable ruling), but have little control over which new position the judge may be assigned to. This is because of the complex nature of vacancies and strict seniority rules that are followed for assignment to any courtroom. That said, due to an abundance of caution, in the next sections, we estimate both the effect of all judge transfers and the effects of judge transfers due to retirements, which we know are predetermined.

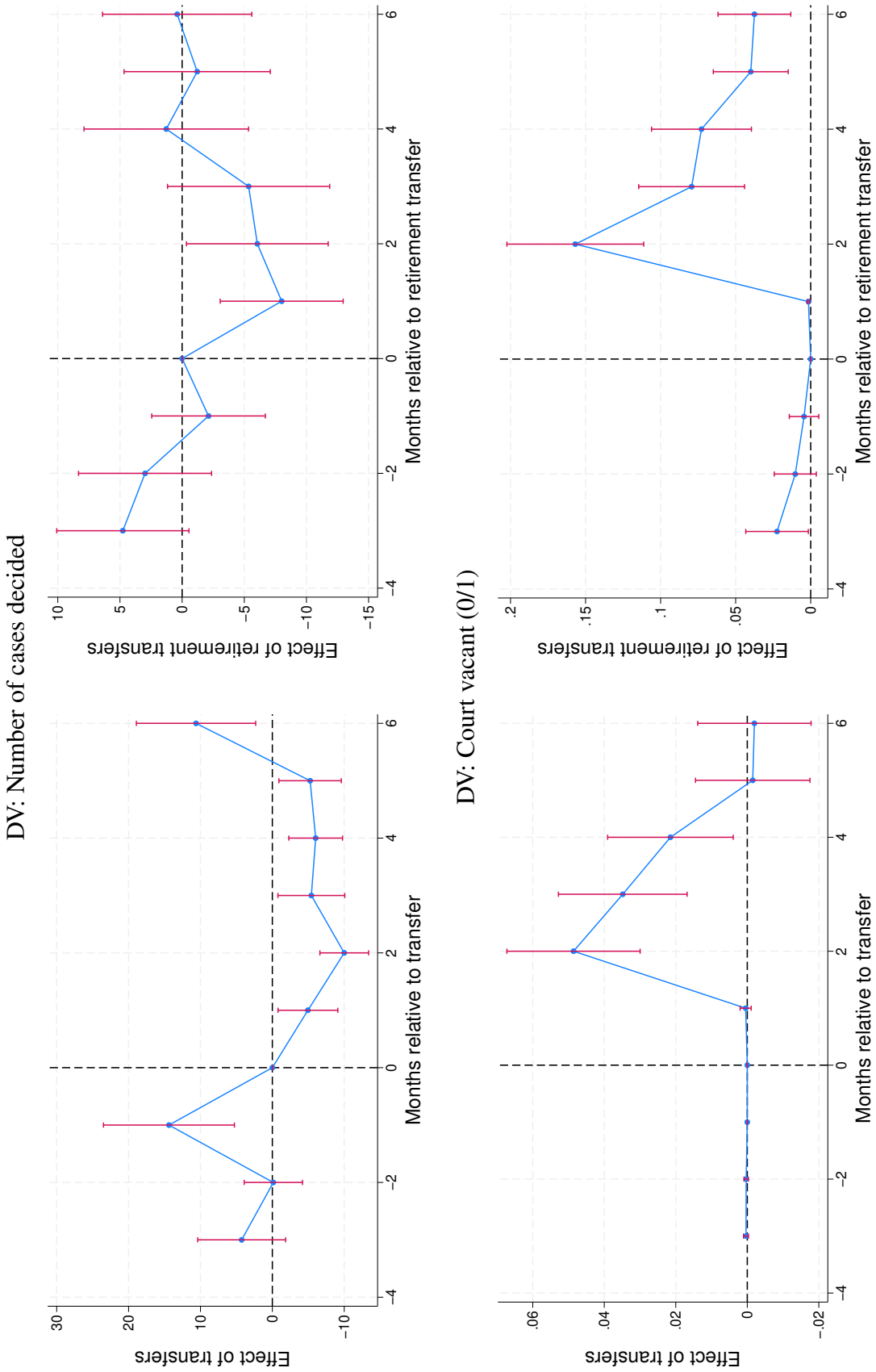
5 Transfers Reduce Courtroom Productivity

To examine the effects of transfers on courtroom productivity, we estimate equation 1 using the dynamic difference-in-difference estimator and the number of cases decided in that month-year as the outcome variable.¹⁰ The results of this analysis are depicted in Figure 2 and are summarized in Appendix Table 12. The top left panel of the figure shows the estimated effects of total transfers on the number of cases decided in the three months before and six months after a transfer.

The figure suggests that the courts issue 5–10 fewer decisions for the five months after transfers. These effects are substantively and statistically significant. Since the average courtroom issued 45.8 decisions per month in our data, this amounts to a 10–20% reduction in courtroom productivity in

¹⁰ We code a case as decided in that month-year based on the date of decision.

Figure 2. Transfers reduce courtroom productivity and increase judge vacancies



Notes: The dependent variables are the number of cases decided (top row) and an indicator for whether the court is vacant or not (bottom row). The independent variables are indicators of whether the courtroom experiences a transfer (left side graphs) and a retirement transfer (right side graphs) and its leads and lags. See text for details.

each of the 5 months after a transfer. Cumulatively, courtrooms issued 32 fewer decisions in the 5 months after a transfer. Put differently, courtrooms lose approximately 0.7 months of productivity because of transfers.

The estimated effects of transfers is significantly positive in the month before they occur. Although this is consistent with the positive anticipation effect theorized above (where judges might accelerate the disposal of cases where they have completed hearings) and the fact that transfers are typically announced two to four weeks before they are effectuated, it suggests a violation of the parallel trends assumption that is the basis of the dynamic difference-in-difference estimator.

To address this issue and confirm that transfers do indeed *cause* a reduction in court productivity, we rerun our analysis to focus on the effects of transfers due to retirements rather than all transfers. As described in the research design section, judges retire precisely when they turn 60. We therefore have reasons to believe that retirement transfers are orthogonal to courtroom characteristics.

We plot the estimated effects of retirement transfers in the top right panel of Figure 1. The placebo tests for the three months before transfers are statistically insignificant, which suggests that the parallel trends assumption holds. The estimated effects of transfers are somewhat attenuated but remain negative and statistically significant. Courtrooms issue approximately 6 fewer decisions on average for the three months after transfers are announced. Cumulatively, courts issue 19.4 fewer decisions in the quarter after a transfer, which is the equivalent to 0.4 months of lost court productivity.

Although our findings constitute the first systematic evidence that judge transfers undermine court productivity in India, it is noteworthy that they are consistent with a small practitioner and journalistic (qualitative) literature that also posits a connection between transfers and case delays. For example, in a chapter on “the curse of the revolving docket,” Thikkavarapu and Jain (2025) advance such an argument, providing readers with examples of delayed cases that experienced many judge transfers. In an online news article, Barnagarwala (2022) points to the egregious example of an as yet unresolved case that had been pending for over 36 years and that had been assigned

to approximately 12 judges. Judges too seem to be aware of the issue, with a High Court judge observing that transfers have “a serious telling repercussion on the disposal of the pending cases ... It becomes difficult to pinpoint the responsibility if the matter of enquiry is as to who was the officer who neglected to take up the old case. Moreover by the time a new officer familiarises himself with the pendency of the old cases and chalks out a phased programme to decide them, he is shifted to another court” (Allahabad High Court 1998).

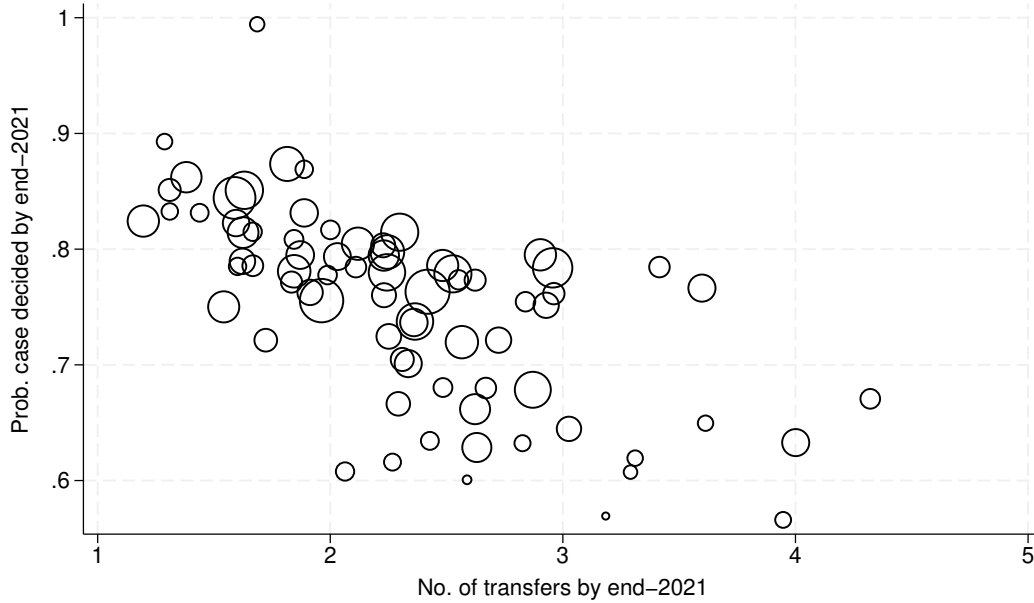
To help explain why transfers decrease the number of decisions issued, we explore whether transfers increase court vacancies. Our analysis is presented in the lower panels of Figure 1. Transfers and retirement transfers are both associated with a greater probability of subsequent vacancies. In months 2–4 after retirement transfers, the probability that a court was vacant increased by 7–16% or by over than 100%. This result is particularly noteworthy since we expect that vacancies in our administrative data to be undercounted. Vacancies could occur if new judges are not assigned to immediately substitute for old ones (we expect our data to reflect these *de jure* vacancies), and if newly assigned judges take time to start in their new positions (we do not expect the vacancy data to reflect these *de facto* vacancies). The estimated effects of judge transfers on decisions and vacancies are apparent in the standard two-way fixed effects estimator too (see Appendix Table 13),

In interviews, judges confirmed our statistical findings, noting that adjusting to new positions takes time and reduces judge productivity in the first few months after transfers (interview J5, August 2022). They also noted that judges with upcoming transfers might defer issuing decisions for cases that are fully heard (interview J1, May 2022), and further that they might defer hearings, particularly for difficult cases (interview J4, July 2022).

We have thus far shown that transfers reduce court productivity. To describe the welfare effects of transfers, and since individuals file cases, we estimate their effects on the probability of a case being decided.

While our analysis thus far focused on court-level productivity, the welfare consequences of

Figure 3. Cases in districts with more transfers are less likely to be decided



Notes: Data are for Uttar Pradesh. Circle sizes are proportionate to the number of cases filed in each district.

transfers are borne by the individuals who file cases. For analysis of welfare, the case and not the courtroom is therefore the relevant unit of analysis. Accordingly, we next turn to estimating the effect of transfers on the probability a case will be decided. For now, our case-level analysis is based on an analysis of a randomly chosen 10% sample drawn from the approximately 6 million cases in our data.

To examine the effects of transfers on judicial decision-making, we start by graphically examining the bivariate relationship between the mean transfers experienced by cases in Uttar Pradesh's 74 districts and the probability that a case was decided. Both variables are measured as of end-2021. Figure 3 shows that the two are negatively correlated, suggesting that transfers worsen judicial decision-making.

To rigorously explore this relationship, we employ OLS regressions to estimate equation 2, as summarized in Table 1. Regression 1 in panel A replicates the negative bivariate relationship between transfers and the probability that a case is decided, illustrated in Figure 3. In the next regressions, we add case-specific controls, case-type fixed effects, courtroom fixed effects, their

interactions, and filing month-year fixed effects. The fully saturated model, in column 4, suggests that transfers substantially slow decision-making: one judge transfer (that is, a 0.2 standard deviation increase in mean transfers) decreases the chances that a case will be decided by end-2021 by a statistically significant 6.4 percentage points or 8.3%.

For the case-level analysis, since we have over 6 million cases and cumulatively just 10,598 judge transfers, transfers are likely to be exogenous to most individual cases. In other words, if each transfer occurs because of say two cases, 21,196 out of over 6 million cases (0.35%) would be endogenous. This suggests that transfers are likely to cause judicial delays.¹¹

To increase our confidence in our finding that transfers do indeed *cause* case delays, we disaggregate the total transfers variable into transfers due to retirements and for other reasons.¹² Since the retirements are predetermined, they are likely to be exogenous to court cases. The results of the fully saturated model (Panel B, regression 4) suggest that transfers due to retirements reduce the probability of a case being decided by substantively and statistically significant 5.6 percentage points or 7.2%.¹³

Our results are robust to clustering standard errors at the court rather than courtroom level (this helps account for the correlation between within-court transfers induced by the seniority rule) and to re-specifying the transfer variables as dummies, logging them, and winsorizing them too (Appendix Table 16). Specifying the years to decision as the dependent variable also yields consistent results,

¹¹ In addition, sensitivity analysis due to Cinelli and Hazlett (2020) as applied to our preferred specification (regression 4 in Panel A) suggests that an omitted variable would have to explain at least 39.6% of the residual variation in the treatment and outcome to fully account for the observed estimated effect. Such a confounder is highly unlikely in that it would need to explain more than several hundred times the variation explained by (1) case complexity (measured using the number of sections a case is filed under), (2) a dummy for whether the petitioner is female, or (3) a dummy for whether the state is the respondent.

¹² These results are similar when we control for estimated collateral transfers separately (see Appendix Table 14).

¹³ When do transfers have a particularly negative effect on judicial decision-making? To explore this question, we re-measure the dependent and independent variables to within 1, 2 and 3 years of a case being filed and rerun our analyses. The regressions in panel A of Appendix Table 15 suggest an additional transfer particularly slows judicial decision-making in the early years of the case, with the marginal effect ranging from 6.2–8.2% in the first three years of a case, which is similar to the effect of transfers on a case being decided by end-2021. Another way of reading these results is that we might be particularly interested in the effects of transfers in egregious delays, beyond (say) 3 years: regression 3 suggests that the marginal transfer increases the chances that a case will take more than three years to conclude by 6.2%.

Table 1. Transfers reduce the chances of a case being decided

	Case decided by end-2021 (0/1)				Judge vacancy (0/1)	No. of vacant spells	No. of hearings
	1	2	3	4	5	6	7
Panel A:							
Number of transfers	-0.0606*** (0.00152)	-0.0577*** (0.00182)	-0.0596*** (0.00184)	-0.0642*** (0.00170)	0.0117*** (0.000599)	0.0292*** (0.00153)	2.528*** (0.0533)
Observations	615723	615723	615609	614889	614889	614889	568184
Adjusted <i>R</i> -squared	0.37	0.41	0.55	0.58	0.43	0.47	0.57
Panel B:							
Number of retirement transfers	-0.0138 (0.0149)	-0.0154 (0.0137)	-0.0450*** (0.0117)	-0.0557*** (0.0109)	0.0218*** (0.00703)	0.0433*** (0.0147)	5.088*** (0.379)
Number of other transfers	-0.0616*** (0.00154)	-0.0586*** (0.00185)	-0.0599*** (0.00190)	-0.0644*** (0.00176)	0.0115*** (0.000604)	0.0289*** (0.00150)	2.474*** (0.0533)
Observations	615723	615723	615609	614889	614889	614889	568184
Adjusted <i>R</i> -squared	0.38	0.41	0.55	0.58	0.43	0.47	0.57
Dependent variable mean	0.77	0.77	0.77	0.77	0.08	0.11	11.61
Case-specific controls		✓	✓	✓	✓	✓	✓
Case type fixed effects		✓	✓				
Courtroom fixed effects			✓				
Case type X courtroom fixed effects				✓	✓	✓	✓
Filing month-year fixed effects			✓	✓	✓	✓	✓

Notes: The dependent variable is an indicator for whether a case was decided; the independent variable is the number of transfers.

Case-specific controls are indicators for the acts under which cases are filed, variables for the number of acts and sections to which cases refer, and indicators for the gender of the parties and whether they are the government. Standard errors clustered by courtroom for regressions in columns 1–3; standard errors are clustered by case type X courtroom for the regressions in columns 4–7. * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$. See text for details.

although by definition this analysis can only use data on decided cases (see Appendix Table 17).

In Table 2, we examine the heterogeneity in the effect of transfers, showing that the negative effects of transfers are remarkably stable across case and court types. In columns 1–4, we examine the degree to which transfers affect cases that are classified into the mutually exclusive, collectively exhaustive categories of civil, criminal, bail and unclassified cases (see Appendix A for coding rules). Transfers decrease the chances of all case types being decided at end-2021, with transfers having somewhat larger effects (in percent terms) on civil cases, and smaller effects on criminal ones. Transfers have the smallest effect on bail cases, a finding to which we return later.

In columns 5–8, we examine the varying effects of transfers across courts ordered from junior to senior, starting with Junior Division courts and ending with District and Session Courts, which are the senior-most courts in a district and from which judges typically retire. We find that judge transfers are more disruptive to cases filed in junior courts: whereas an additional transfer decreases the chance of a case being decided by 14–17% in the Junior and Senior Division courts, they decrease the chances of a case being decided at end-2021 by 6–9% in the Chief Judicial Magistrate and District and Session courts.

To examine the mechanisms by which transfers undermine court productivity, we draw on our theory to test whether transfers trigger two of the mechanisms posited therein. First, do transfers cause cases to be unassigned to judges for brief spells, and second, do they cause cases to require additional hearings before being decided.

Column 5 of Table 1 suggests that an additional transfer increases the chances of a case experiencing any vacancy by over 10%. Column 6 suggests a similarly large effect if we employ the number of vacancies as the outcome variable. As before, the results are robust to using retirement transfers as the key independent variable. These results are consistent with the courtroom analysis, which showed that transfers increase the chances of a courtroom-level vacancy.

We also test whether transfers cause cases to have more hearings, thereby contributing to judicial delays. While the average case in our data has 11.6 hearings, regression 7 suggests that

Table 2. Heterogeneous treatment effects by case type (columns 1–4) and court type (columns 5–8)

Sample:	Case decided (0/1)							
	Civil cases	Criminal cases	Bail cases	Unclassified cases	Civil judge Junior div	Civil judge Senior div	Chief Judicial Magistrate	District and Session Judge
	1	2	3	4	5	6	7	8
Panel A:								
Number of transfers	-0.0342*** (0.00209)	-0.0386*** (0.00103)	-0.0525*** (0.00601)	-0.0978*** (0.00313)	-0.0897*** (0.00512)	-0.117*** (0.00500)	-0.0729*** (0.00294)	-0.0444*** (0.00148)
Observations	18527	69225	24453	502684	64727	49482	301442	143625
Adjusted <i>R</i> -squared	0.55	0.53	0.39	0.60	0.59	0.68	0.58	0.60
Panel B:								
Number of retirement transfers	-0.0574*** (0.00940)	-0.0308*** (0.0101)	-0.0502*** (0.00634)	-0.0603*** (0.0176)				-0.0885*** (0.00921)
Number of other transfers	-0.0334*** (0.00218)	-0.0387*** (0.00106)	-0.0526*** (0.00601)	-0.0986*** (0.00314)	-0.0897*** (0.00512)	-0.117*** (0.00500)	-0.0729*** (0.00294)	-0.0426*** (0.00156)
Observations	18527	69225	24453	502684	64727	49482	301442	143625
Adjusted <i>R</i> -squared	0.55	0.53	0.39	0.60	0.59	0.68	0.58	0.60
Mean dependent variable	0.30	0.47	1.00	0.81	0.64	0.66	0.82	0.80

Notes: The independent variables are defined as transfers until end-2021. All regressions control for indicators for the acts under which cases are filed, variables for the number of acts and sections to which cases refer, indicators for the gender of the parties and whether they are the government, case type X courtroom fixed effects, and filing month-year fixed effects. Judges retire from the District and Sessions courts. Standard errors clustered by case type X courtroom. * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$. See text for details.

each additional transfer causes an additional 2.5 or 22% hearings (the estimates are larger for retirement transfers). These results are consistent with interviews, wherein judges confirmed that transfers do indeed slow down cases by causing arguments to be re-heard. In an interview, one judge noted: “There have been cases that have been heard by 10 judges, and still no decision has been issued. If a judge is transferred after arguments have been heard once, sometimes – but not always – arguments need to be re-heard” (interview J1, May 2022). Another judge noted that “Most orders require to be re-heard – a new judge may have a new angle to a case” (interview J3, July 2022).

Together, these results provide support for both hypothesized mechanisms: transfers increase the chances that a case is unassigned to a judge for a while, and increase the total number of hearings experienced by cases.

6 Reducing the Effects of Transfers

The analysis thus far suggests that transfers worsen judge productivity and increase the time to decision for cases. An obvious solution is to reduce the frequency of transfers, perhaps by relaxing the adherence to the seniority principle that drives many transfers.¹⁴ Yet, our data suggest that there are ways to reduce the negative effects of transfers, conditional on any given level of transfers.

First, consider the benefits of better staggering transfers. In Uttar Pradesh, between 39% of the transfers occur in one batch in April and May due to an Annual Transfer exercise. The remaining transfers occur in a staggered manner throughout the year. In interviews, judges noted the disruptive potential of mass or batch annual transfers (interview J5, August 2022).

Consistent with this account, regression 1 in Table 3 suggests that while both mass and staggered transfers reduce the probability that a case is decided by end-2021, the negative effect of mass transfers are 27% greater than the effects of staggered transfers. The difference in the estimated effects of mass and staggered transfers is substantively and statistically significant, although the

¹⁴ A related fix would be to break up Uttar Pradesh’s 504 courts—which have an average of 59 courtrooms each—into smaller courts, each with fewer courtrooms. In smaller courts, each transfer will lead to fewer collateral transfers.

Table 3. Possible Fixes: Staggering transfers and rules for the time-bound disposal of cases attenuate the negative effects of transfers

	Case decided (0/1)	Judge vacancy (0/1)	No. of vacant spells	No. of hearings	Case decided (0/1)	
	1	2	3	4	5	6
Number of mass transfers	-0.0762*** (0.00512)	0.0208*** (0.00258)	0.0429*** (0.00462)	3.410*** (0.146)		
Number of staggered transfers	-0.0596*** (0.00272)	0.00813*** (0.00126)	0.0237*** (0.00236)	2.208*** (0.0829)		
Number of transfers					-0.0646*** (0.00170)	
Number of transfers X Bail cases					0.0232*** (0.00753)	
Number of retirement transfers						-0.0556*** (0.0119)
Number of retirement transfers X Bail cases						0.0119 (0.0207)
Number of other transfers						-0.0648*** (0.00177)
Number of other transfers X Bail cases						0.0235*** (0.00771)
Observations	614889	614889	614889	568184	614889	614889
Adjusted R-squared	0.58	0.43	0.47	0.56	0.58	0.58
Mean dependent variable	0.77	0.08	0.11	11.61	0.77	0.77

Notes: The independent variables are defined as transfers until end-2021. All regressions control for indicators for the acts under which cases are filed, variables for the number of acts and sections to which cases refer, indicators for the gender of the parties and whether they are the government, case type X courtroom fixed effects, and filing month-year fixed effects. Standard errors clustered by case type X courtroom. * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$. See text for details.

effect of the latter are also significantly different from zero. This suggests that spreading transfers throughout the year could attenuate their negative effects. Consistent with our theoretical account of why mass transfers might be more disruptive than staggered ones, we show in the subsequent three regressions that mass transfers are more likely to lead to vacancies and hearings than other transfers.

Rules also appear to help. As in other countries, strong norms ensure that bail cases in India are resolved quickly. Consistent with this, regression 2 suggests that transfers impede the disposition of bail cases less than other cases. Regression 3 suggests that this pattern is apparent when considering

retirement and other transfers.

Importantly, the policy implications of these findings—undertake staggered rather than mass transfers, and require cases be decided quickly—do not necessitate fewer transfers per se, but rather suggest ways to reduce the negative effects of transfers, whatever their frequency.

7 External Validity

We are able to confirm that our results on the effects of transfers on productivity travel to other parts of India. To show this, recall that Figure 1 showed that lower court judges are transferred frequently across the country. In other words, the problem of frequent transfers is endemic to the lower judiciary nationwide. To examine the productivity effects of transfers, we draw on the case-level data released by Ash et al. (2025), which—for about 10.8% of decided cases or 8.3% of total cases—notes the judge that the case was filed under and the judge that the case was decided under. This allows us to code whether each decided case experienced a transfer,¹⁵ but not the precise number of transfers. In Appendix Table 18, we model the time to decision as a function of whether the case experienced at least one transfer and courtroom and month-year fixed effects. Standard errors are clustered at the courtroom level. The saturated model in column 3 suggests that cases that experience a transfer take an additional 1.4 years to be decided. The model in column 4 shows that this effect is remarkably stable across India’s states.¹⁶

Our theory suggests that similar effects might obtain in countries where transfers are frequent, there are lots of pending cases, and judges set the pace for case disposal. Indeed, some works suggest similar dynamics in countries as varied as China (Zhu 2024), Japan (Foote 2017), Kenya (Orina 2016), Mexico (Brassiolo et al. 2021), Italy (Guerra and Tagliapietra 2017), Spain (Rosales-López 2008) and even the United States (Paschal 1948). Even more generally, state employees are transferred or rotated across many bureaucracies, ranging from the tax collection agencies such as

¹⁵ We thank Nirvikar Jassal for noting this.

¹⁶ In this specification, transfers increased the time to decision in Uttar Pradesh by 1.3 years. Using the same specification on our data—which is for cases filed between 2015–2018—yields a similar estimate of 1.6 years.

the United States' Internal Revenue Service to Japan's upper bureaucracy. The frequent transfer of bureaucrats might undermine productivity in those contexts as well.

8 Discussion and Conclusion

We have theorized and shown—using a variety of research designs—that judge transfers are frequent, and that they slow judicial decision-making. These findings help explain significant case delays and high pendency rates in India. Our results are likely to travel to other parts of the country and world, including to countries as diverse as China, Kenya and Mexico, where transfers are frequent, there are lots of pending cases, and judges set the pace for case disposal.

The estimated effects of transfers are large. The average transfer—which for the average judge occurs once every 10 months—causes a courtroom to issue 32 fewer decisions, which is equivalent to 0.7 months of lost productivity. Transfers slow decision-making as they create court vacancies and increase the hearings needed to decide cases. Better planning and rules for the time-bound disposal of cases can attenuate the negative effect of transfers: staggered transfers have less pernicious effects than mass ones, and bail cases—which are decided quickly—are less affected by transfers.

Our finding that most transfers are collateral transfers suggests that the negative effects of transfers are the unintended consequence of the seniority system. This system, which dictates which judges are transferred, when, and where, is a classic depoliticizing mechanism—an "anti-politics machine" (Ferguson 1994)—intended to safeguard judicial independence. That this rule ironically degrades court productivity provides a vivid illustration of how rigid, top-down rules can be counterproductive for complex tasks such as delivering justice (Honig 2018; Scott 2020).

Although transfers could, in principle, reduce judge corruption, increase judicial independence, or broaden judicial experience, it is not clear whether these potential benefits justify the high frequency of transfers, particularly when other judiciaries have met these goals without them. Due to space and data constraints, we leave it to future work to test for the potential benefits of transfers.

Other work could also examine variation in judge transfer practices across and within countries.

Comparing the effects of reducing transfers to the effects of hiring more judges, which is a frequently prescribed solution to high case pendency across the developing world, is instructive. Hiring judges requires budgetary outlays and has proved to be difficult in India (Chandrashekar et al. 2024; Thikkavarapu and Jain 2025). In contrast, reducing judge transfers does not require additional funds and is arguably easier. In Uttar Pradesh, reducing transfers from once a year to once every three years would be the equivalent to hiring over 150 judges.¹⁷ This is a substantial effect, particularly since the government has not been able to hire very many judges in recent years despite having over 1,000 vacancies.¹⁸

A major innovation of our study is to extend the study of the bureaucracy, which has thus far focused on the executive, to the judiciary. In so doing, we show that judges suffer from the same pathology—frequent transfers—as do bureaucrats in many countries. Although the literature on bureaucratic transfers has suggested the possible negative consequences of frequent transfers, it has difficulty estimating such effects because bureaucratic output is varied and is therefore difficult to measure systematically. Since all judges decide cases, switching focus to judges solves this problem, allowing us to document some of the welfare costs of frequent transfers.

Our paper furthers the small, new, data-driven literature on the Indian judicial system, extending it to the major and understudied issue of judicial delays. Whereas much of the policy literature on judicial delays notes that the system is severely underresourced, we show that the system can do more with its existing resources by simply reducing the frequency of judge transfers, which would boost court productivity.

The problem of judicial delays is not unique to India but plagues rich and poor countries worldwide. By tracing the effects of the frequent transfer of judges on case disposals, we extend the broader comparative literature on this issue, which has focused on the effects of factors such as

¹⁷ In our data, there were 3,873 transfers in 2018. Since the average transfer causes courts to issue 32 fewer decisions in the 5 months after the transfer, reducing this by two-thirds would increase the number of decisions issued by 82,624, which is the equivalent of the annual output of 150 judges.

¹⁸ Uttar Pradesh hired 196 lower court judges in 2020, 182 judges in 2021 and 5 judges in 2022.

technology and case complexity. In contrast, we argue that a major cause of judicial delays is the seemingly innocuous frequent transfer of judges.

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A Data Appendix

A.1 Background

The judicial system in India is hierarchically organized into three levels—the Supreme Court (at the highest, national level), the High Courts (at the state level) and the District Courts (at the administrative district level). The district courts are also often known as the “lower judiciary” and are the first line of complaint or courts of first instance for litigants.

Our study is based in Uttar Pradesh, wherein each district has one or more court complexes, which have several levels of judges practicing in them. Judges are either directly recruited through a comprehensive examination process to the lowest rank, but can also be recruited from the bar following years of legal practice. At any point in time, judges are assigned to either civil, criminal or revenue courts, and each position roughly lasts for about 1 year. We define a “position” as being assigned to a particular courtroom.

The highest judge in a district court is the “District and Sessions Judge,” who can hear both civil and criminal cases at the district level. The “Civil Judge Junior Division” is the lowest ranking judge who can hear civil cases - this is typically the position held by new “direct” recruits. The lowest ranking counterparts for criminal courts are known as “Judicial Magistrates.” The jurisdiction of courts depends on the severity of the case.

There are several courtrooms within a court complex that are of a particular type - and each judge is typically assigned one (or sometimes more than one) “court-rooms” wherein they hear cases. The Allahabad High Court determines the rules for transfers of judges in Uttar Pradesh. According to the rules announced each year, every judge is to be transferred on the completion of three years¹⁹.

There are a total of 74 court districts in Uttar Pradesh. We capture data for the districts courts within these court districts. There are 164 court complexes, for a total of 509 courts and 5754

¹⁹ or two years for outlying court (a court outside the district headquarter) or at Sonbhadra district

courtrooms across Uttar Pradesh.

A.2 Data

Our data comes from multiple sources. The data collection process involved compiling several sources of publicly available data, and scraping court records from the websites of eCourts India.

A.3 Case Data (Dependent Variable)

We collect case data for every district court in Uttar Pradesh from the Indian e-Courts platform - a public-facing software that includes case-level and hearing-level metadata about a case. To put together this dataset, we first use the eCourts identifiers (CINOs) from the judicial data put together by Development Data Lab²⁰. These span the universe of cases filed between 2010 and 2018. We augment the case data with additional data, and remove duplicates. The process is described below, and depicted visually in Figure 1.

A.3.1 Augmenting Case Data

We then scrape additional information about each case, to augment the publicly available data with information on hearings and other court-level metadata. We used the computing resources made available by the Center for High Throughput Computing at UW–Madison in order to clean and augment the raw data with additional data by scraping the `dcourts` websites to get more information on hearings and other case-level metadata (like FIR number, Police Station information, litigant information and so on).

We were able to scrape additional data for about 10.8M cases, which is about 82% of the cases. The cases that could not be scraped were due to server errors.

²⁰ Source: <https://www.devdatalab.org/judicial-data>

A.3.2 De-Duplication due to case transfers

For the analysis, it is necessary to uniquely identify cases. However, when cases are moved from one court to another, they are typically assigned new identification numbers. There are two scenarios wherein cases move from one court to another. The first is when a case is transferred across courts - from one court type to another court type. For example, a case can move from the Judicial Magistrate court to the Chief Judicial Magistrate court. For such cases, a new case identification number is assigned. The second type is when a case moves across court rooms within the same court type. For such cases, no new case identification number is assigned. The former leads to a situation wherein there are duplicate entries for the same case and these need to be handled. The two scenarios are elaborated below:

Transferred Cases: Across Courts

A number of cases have been transferred across courts - in such a scenario, the case gets a new case number. The eCourts website updated their data in 2023 with information on the case mappings for such cases, and we scraped this data that would help us match and handle these “duplicate” entries to obtain a single identifier for a case record that allows us to determine the filing date, decision status and decision date (if available) for each unique case. On performing this deduplication step, we end up with about 8.8 million unique case records.

Transferred Cases: Across Court Rooms

A number of cases have been transferred across court rooms. While these are not assigned new case numbers, we make sure that the outcomes calculated at the court-room level take into account the correct court-room. For example, in order to calculate the number of hearings conducted in a court-room, we use information regarding how a case moves through court rooms in order to compute the correct number of hearings for a case in each court room. Taking this into account is important since our goal is to match judges to court-rooms, and analyse their productivity.

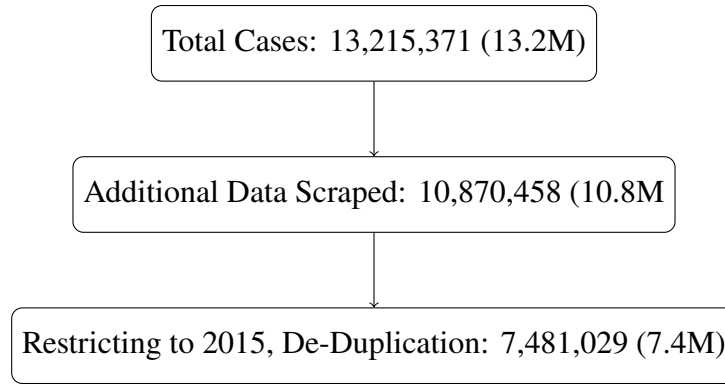


Figure 4. Case Filings in Dataset

A.3.3 Case Classification

For the 7.4M million cases filed, we use the case information to classify the types of cases into categories:

1. Civil Cases
2. Criminal Cases
3. Cheque Bounce Cases
4. Bail Cases
5. Cases where the state is involved.

We identify civil and criminal cases by using the case metadata (more specifically, we use information about the case type, act, section and FIR details (if available)). Broadly, cases under the ‘Civil Procedure Code’ are classified as civil cases, while those filed under the Indian Penal Code or Criminal Procedure Code are classified as Criminal Cases.

Next, we identify cheque bounce cases as those cases filed under the Negotiable Instruments Act. The NI Act in India involves criminal charges against the accused. Further, we identify bail cases mainly using the case type information. Bail requests can only be made for criminal cases²¹

²¹ Source: <https://districts.ecourts.gov.in/sites/default/files/6-Bail%20Anticipatory%20Bails%20-%20Sri%20M%20Sreenu.pdf>

therefore all bail cases are also criminal cases. Finally, we identify the state as a party in the case, by looking at whether the petitioner or respondent are variants of ‘UP Government’ or ‘Indian Government.’

About 85% of the cases are classified as civil or criminal. 12% are identified as civil, 73% are identified as criminal whereas the case types for the remaining 15% could not be determined.

A little over 4% of civil cases have the state involved - examples of such cases include complaints under the SC / ST Act. All cheque bounce cases and bail cases are criminal cases. Further, we have a small fraction of cases that make bail requests for persons charged for a cheque bounce. All criminal cases have the state as an involved party, and is indicated accordingly (and the same logic also applies to cheque bounce and bail cases).

Case Type	Civil	Criminal	Cheque Bounce	Bail	State
Civil	896212	NA	NA	NA	NA
Criminal	NA	5525110	NA	NA	NA
Cheque Bounce	NA	155250	155250	NA	NA
Bail	NA	857172	4190	857172	NA
State	37596	5525110	155250	857172	6021771

Of the 7.6 million cases, 70% have been decided. We use the `nature_of_disposal` to classify the decision type for decided cases.

1. Contested Cases (46% of decided cases)
2. Uncontested Cases (53.9% of decided cases)
3. Could not be categorized as either (0.01% of decided cases)

Case Type	Counts
Contested	2492650
Uncontested	2915687
Other	4033

A.3.4 Aggregating to Court-Room Level Data

The case-level data can be aggregated and summarized at the court-room level. We produce a month-year dataset for all 3044 court rooms in our data, out of which we observe the transfers data and cases data for 2542 courtrooms (84%). We see data populated for $(3044 * 12 \text{ months} * 4 \text{ years})$ 146112 rows - for each court-room-month-year combination, we compute case-based outcomes and merge additional data about court infrastructure²² and district characteristics²³. Additional information on this step for each variable is available in a data codebook²⁴

A.4 Judge Data (Independent Variable)

We also obtain data on judges in all courts in Uttar Pradesh District Courts from two sources: first from the eCourts platform, and second from the website of the Allahabad High Court. These sources have two key differences between them, however both include the judge’s name, their designations, the start and end dates of appointment. Importantly, the eCourts data includes the information on court rooms that allows us to link the judge data back to cases, however spans a limited time period. Additionally, the judge profile data scraped from the Allahabad High Court includes information about a judge’s entire career, and other metadata, however, this information is not available for (now) retired judges. While we tried to obtain this additional data by filing requests under the “Right to Information” Act, our request was rejected.

The eCourts data has information on judge’s start and end dates in each court room, which we

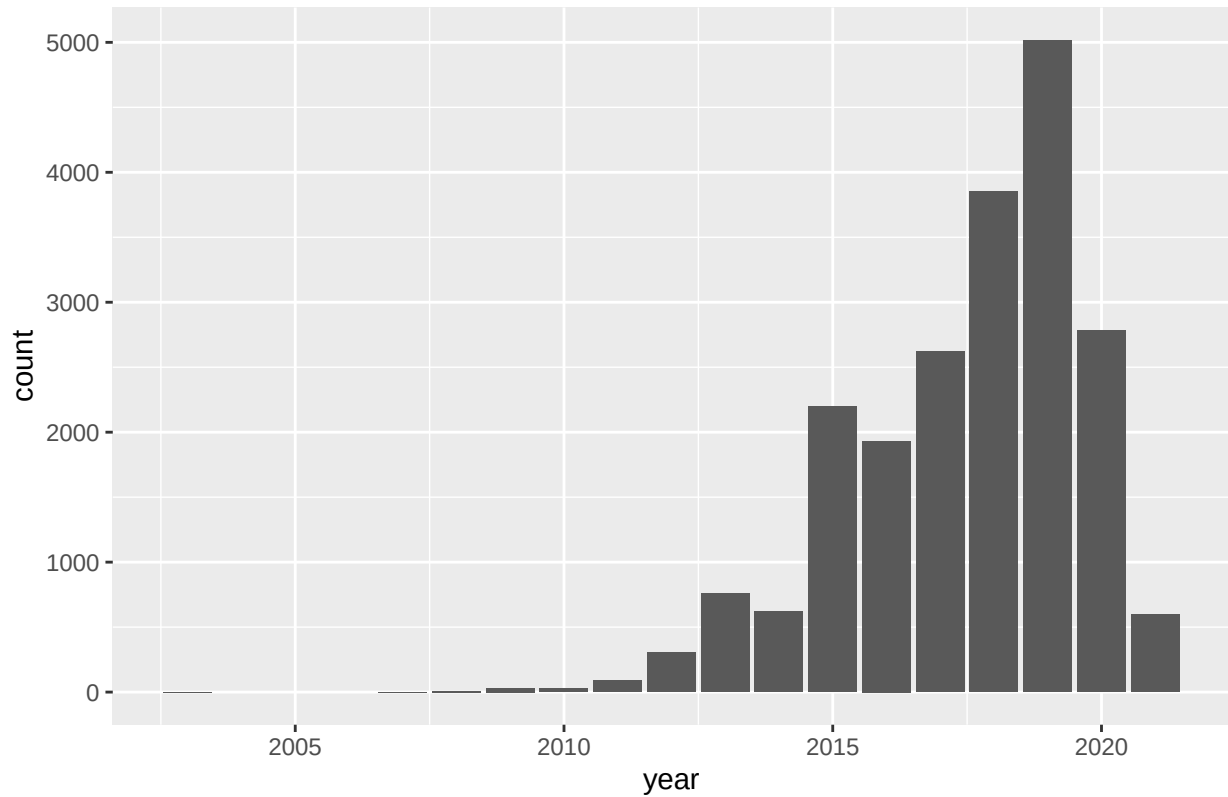
²² Source: <https://jal-di-vidhi-legal-policy.in/>

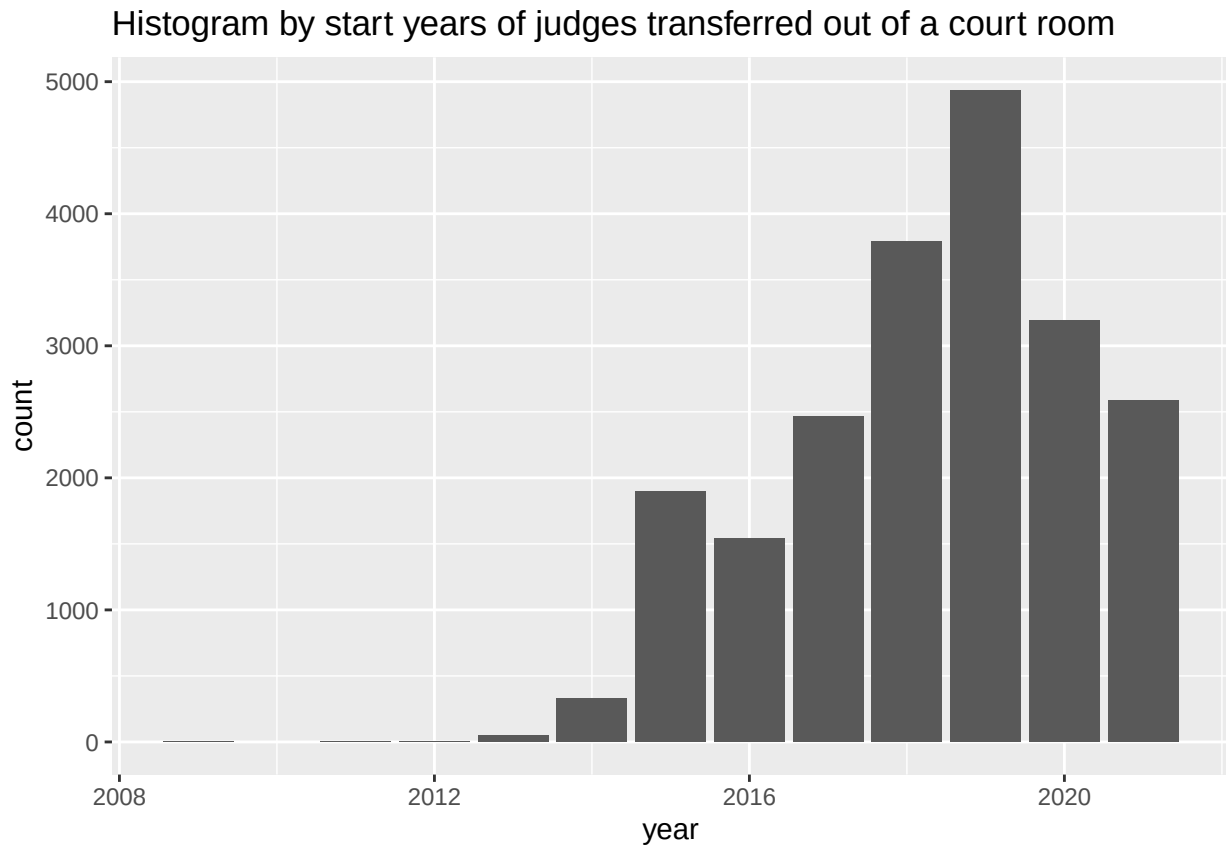
²³ Source: <https://www.devdata-lab.org/shrug>

²⁴ Link: <https://bit.ly/codebook-for-bbj>

use to create our main independent variable on transfers. We are able to match 97.6% of cases with courtrooms, that allows us to assess the dynamics both at the case level and at the courtroom levels.

Histogram by start years of judges transferred into a court room





We compute two variables from this data: `transfer_in` and `transfer_out`. `transfer_in` uses the `start_date` of a judge in a court room to determine whether a judge was transferred into a court room at a given month-year. `transfer_out` uses the `end_date` of a judge in a court room to determine whether a judge was transferred out of a court room at a given month-year. Further, for each transfer, we can see if it was a transfer that moved a judge across districts, across court-complexes, across courts or across court-rooms.

Table 6. Types of transfers IN

Type	Count
district transfer	2531
court complex transfer	184
court room transfer	7125
type could not be determined	2909

Table 7. Types of transfers OUT

Type	Count
district transfer	2171
court complex transfer	178
court room transfer	6630
type could not be determined	2917

Finally, we can also determine the type of each transfer: whether it was a scheduled transfer (based on the judge transfer cycles described below), or whether it was a promotion. The data is described in the table below:

Table 8. Transfers IN with type of transfer

Type	Count	Scheduled	Not scheduled	Promotion	No Pro-motion	Promotion and Scheduled
district transfer	2531	1392	1139	142	2248	108
court complex transfer	184	49	135	4	144	1
court room transfer	7125	2152	4973	276	6623	117

A.5 Electoral Cycle Data

We document the dates of all state and national elections conducted in Uttar Pradesh using the information shared by the Election Commission of India on its website.

A.6 Judge Transfer Cycle

We obtained data from the Allahabad High Court for information on “transfer cycles.” Typically, judges are transferred away from their districts every 2-3 years.

We code the transfer cycles for each year using the notifications shared by the Allahabad High

Court each year. We document the entire “regular” transfer cycle for each year from 2010 to 2018 (the official pdfs have been locally archived). Specifically, for each year, we note the month when the transfer notification was released, when the transfer orders announcement was made and the date by which the new position would need to be taken up.

A.7 Coding Rules

We code transfers and the different reasons for transfers (retirements, promotions and their collateral transfers) using the judge-position dataset described above. This data tells us the start date and end date of judges presiding in a courtroom.

We use this panel of judge positions to compute whether a courtroom experiences a transfer during a month-year, and to compute whether a case experiences a transfer.

Transfers

At the courtroom level: A court experiences a transfer during a month-year, if our judge-position date captures an end in a judge’s position in that courtroom during the month-year. Note that this can also happen if a courtroom is lying vacant during the month-year, and in this scenario, a transfer indicates the end of such a term.

At the case level: We count the number of transfers (changes in judges) experienced by a case from its filing date to end-2021 (if the case is undecided) or from its filing date to the decision date (if the case is decided).

Retirement (Transfers)

At the courtroom level: From the judge-position data, we want to capture positions that indicate the end of a judge’s career. This can be done once we identify the last position held by any judge, such that they do not hold any new position in the future. Since we capture judge positions up to late 2024, we can say that if judges do not hold any courtroom between 2021 and 2024, they are possible retirees.

However, some of these judges might have been promoted to the High Court and are not true retirees. To rule this out, we assemble a list of all judges serving in the Allahabad High Court (that includes the start and end dates). If any of our possible retirees fall in this list, we exclude them since they are not actual retirees.

Finally, we prune the list of possible retirees further by merging judge profile data from the Allahabad High Court District Judges' profiles. For each judge serving as of 2023, we are able to capture retirement dates. Thus, we are able to narrow down to 516 judges who retired between 2010 and 2021.

A court experiences a retirement during a month-year, if our judge-position date captures an end in a judge's position in that courtroom during the month-year, for a judge in the list of our retired judges.

At the case level: We count the number of transfers that a case experienced, which were also classified as retirement transfers.

Promotion Transfers

At the courtroom level: Using the judge-position data, we clean up the strings of the judge positions to map to three judge levels: junior, senior and district. For example, a judge serving in the position of "Additional District Judge" is at the "district" level, while an "Additional Civil Judge Senior Division" is at the "senior" position. In order to get a correct mapping of judge position to level, we rely on several sources. First, we refer to "The Uttar Pradesh Judicial Service Rules, 2001" to obtain the list of positions that can correspond to different levels. Next, we implement a consistency check to make sure that for each judge, changes in levels are contiguous (that is, over time, it only moves from a lower to a higher level). For example, while a small number of senior, district-level judges might be temporarily presiding over a junior court, we do not capture this as a "demotion". Finally, we use the judge profile data from the Allahabad High Court District Judges profiles to capture exact dates of promotions for a subset of the judges.

A court experiences a transfer due to promotions during a month-year, if our judge-position

date captures an end in a judge's position in that courtroom during the month-year year for a judge if the next position is at a higher level than the current position.

At the case level: We count the number of transfers that a case experienced, which were also classified as those due to promotions.

Collateral Transfers (promotions, retirements or both)

At the courtroom level: Since we have computed the transfers that are due to retirements or promotions (as described above), we use this information to determine the courts that experienced such transfers. By courts, we mean a group of courtrooms in the same district, at the same level. If courtrooms within this group of courts experienced a transfer in the current or next month, we code these transfers as those that are collateral transfers due to promotions, retirements or both.

A courtroom experiences a collateral transfer due to promotions or retirements during a month-year, if our judge-position date captures an end in a judge's position in a courtroom during the month-year that was found to be on account of a collateral transfer due to promotions or retirements.

At the case level: We count the number of transfers that a case experienced, which were also classified as being collateral transfers due to promotions or retirements.

Collateral Transfers (retirements only)

At the courtroom level: Since we have computed the transfers that are due to retirements (as described above), we use this information to determine the courts at the District and Sessions Courts or Family Courts that experienced transfers due to a retirement. Within the courtrooms in the same District and Sessions Courts or Family Courts in the same district, if courtrooms experience a transfer of judges in the current or next month, we code these transfers as those that are collateral transfers due to retirements.

A court type experiences a collateral transfer due to retirements during a month-year, if our judge-position date captures an end in a judge's position in a courtroom during the month-year that was found to be on account of a collateral transfer due to retirements. In such a situation, all

transfers in courtrooms inside this court type are marked as collateral transfers due to retirements only.

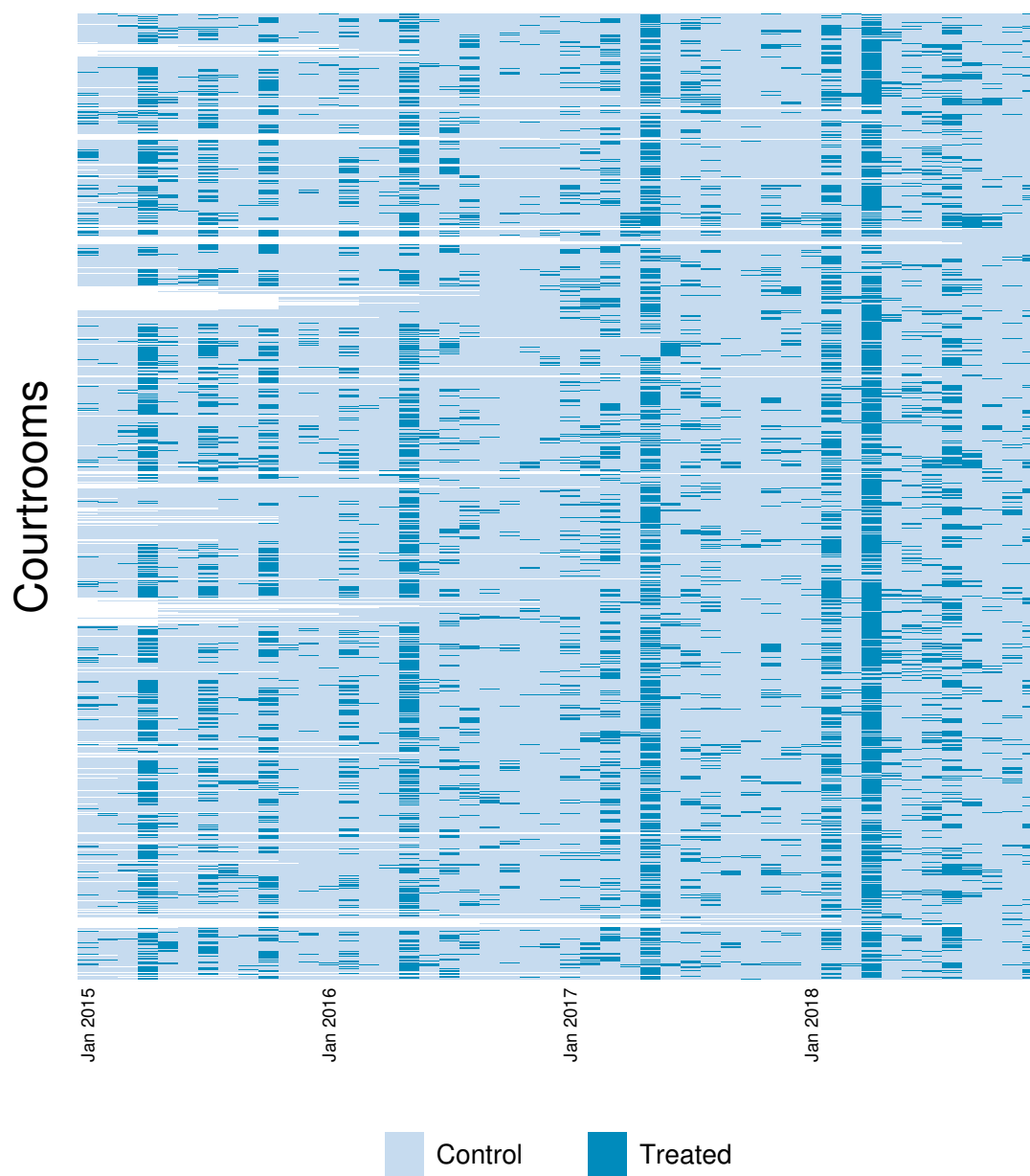
At the case level: We count the number of transfers that a case experienced, which were also classified as being collateral transfers due to retirements only.

Table 9. Summary statistics for Uttar Pradesh courtroom-level analysis

	Obs.	Mean	Std. Dev.	Min.	Max.
Number of cases decided	105,924	45.84	130.80	0	5375
Court vacant (0/1)?	105,924	0.06	0.24	0	1
Transfer month	105,924	0.10	0.30	0	1
Retirement transfer month	105,924	0.00	0.05	0	1

Notes: The data include one observation for each courtroom-moth-year between 2015 and 2018.

Figure 5. Distribution of transfers across courtrooms and over time



Source: Own calculations, based on the courtroom-month dataset.

Table 10. Summary statistics for Uttar Pradesh case-level analysis

	Obs.	Mean	Std. Dev.	Min.	Max.
Prob. case decided by end-2021	620,711	0.77	0.42	0	1
Prob. case decided within 1 year of filing	620,711	0.62	0.49	0	1
Prob. case decided within 2 years of filing	620,711	0.71	0.45	0	1
Prob. case decided within 3 years of filing	620,711	0.75	0.43	0	1
Prob. case experienced a vacancy	620,711	0.08	0.28	0	1
Number of vacant spells	620,711	0.12	0.47	0	19
Number of transfers	620,711	3.24	4.27	0	135
Number of retirement transfers	620,711	0.06	0.30	0	7
Number of other transfers	616,602	2.21	4.19	0	132
Number of transfers within 1 year of filing	620,711	0.57	1.54	0	48
Number of transfers within 2 years of filing	620,711	1.00	2.64	0	71
Number of transfers within 3 years of filing	620,711	1.31	3.48	0	86
Number of retirement transfers within 1 year of filing	620,711	0.02	0.16	0	5
Number of retirement transfers within 2 years of filing	620,711	0.04	0.22	0	6
Number of retirement transfers within 3 years of filing	620,711	0.04	0.25	0	6
Number of mass transfers	616,602	0.83	1.49	0	35
Number of staggered transfers	616,602	1.44	3.05	0	111
Number of acts	620,711	0.95	0.48	0	8
Acts missing	620,711	0.14	0.34	0	1
Number of sections	620,711	0.98	0.68	0	29
Sections missing	620,711	0.12	0.33	0	1
Bailable crime	620,711	0.09	0.29	0	1
Nonbailable crime	620,711	0.10	0.29	0	1
Petitioner: State	620,711	0.08	0.27	0	1
Petitioner: Government of India	620,711	0.00	0.01	0	1
Petitioner: Uttar Pradesh	620,711	0.02	0.15	0	1
Petitioner: Female	620,711	0.15	0.35	0	1
Petitioner: Gender missing	620,711	0.53	0.50	0	1
Respondent: State	620,711	0.04	0.19	0	1
Respondent: Government of India	620,711	0.00	0.01	0	1
Respondent: Uttar Pradesh	620,711	0.01	0.12	0	1
Respondent: Female	620,711	0.10	0.30	0	1
Respondent: Gender missing	620,711	0.21	0.40	0	1
Civil cases	620,711	0.03	0.17	0	1
Criminal cases	620,711	0.11	0.32	0	1
Bail cases	620,711	0.04	0.20	0	1
Other cases	620,711	0.82	0.39	0	1
Cases in Family Courts	620,711	0.07	0.26	0	1
Cases in Civil Judge Junior Division Courts	620,711	0.11	0.31	0	1
Cases in Civil Judge Senior Division Courts	620,711	0.08	0.27	0	1
Cases in Chief Judicial Magistrate Courts	620,711	0.49	0.50	0	1
Cases in District and Sessions Courts	620,711	0.23	0.42	0	1

Notes: The data include one observation for each case filed in Uttar Pradesh's lower courts in 2015–2018.

Table 11. Do politician fixed effects explain variation in judge transfers?

Dependent variable	Adjusted R^2	Δ Adjusted R^2	F-stat	Pr > F	N
Transfers	0.191	0.006	1.85	0.000	82529
Retirement transfers	0.080	-0.002	0.77	1.000	82529
Collateral transfers	0.040	0.084	1.45	0.000	82529
Other transfers	0.176	0.358	1.85	0.000	82529

Notes: For each dependent variable, column 1 reports the adjusted R^2 from an OLS regression with judge, month–year, and case-type fixed effects. Column 2 reports the change in the adjusted R^2 with the addition of politician fixed effects. Columns 3 and 4 report the F -statistic and p -value from tests of the joint significance of politician fixed effects. The last column reports the number of observations in each regression. Whereas politicians fixed effects explain some of the variation in total, collateral, and other transfers, they explain no variation in retirement transfers. See text for details.

Figure 6. Regression discontinuity analysis of the causal effects of ruling party politicians, politicians charged with crimes, and ruling party politicians charged with crimes on transfers

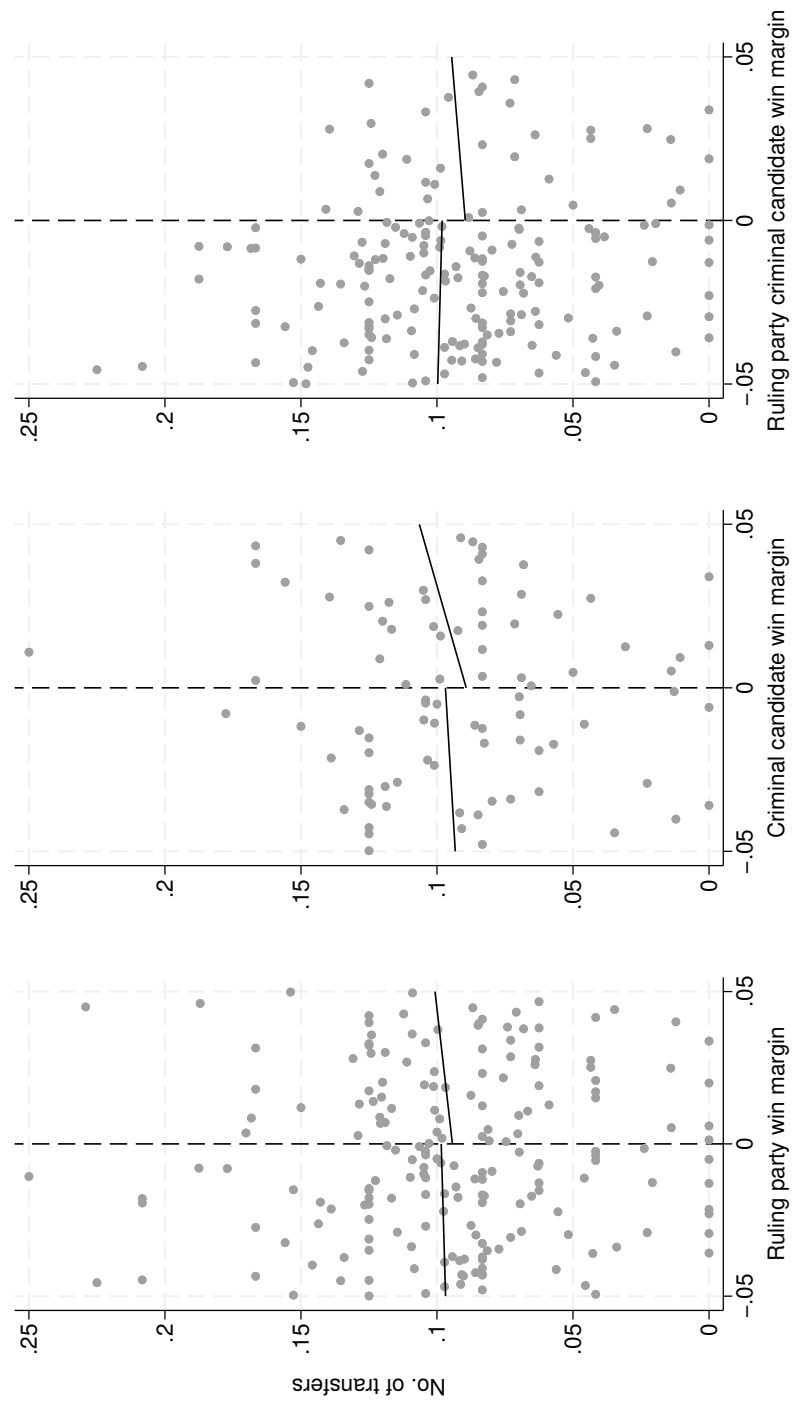


Table 12. Transfers reduce courtroom productivity and increase judge vacancies (dynamic difference-in-difference estimator)

Dependent variable:	Number of cases decided		Court vacant(0/1)	
Treatment variable:	Any transfers	Retirement transfers	Any transfers	Retirement transfers
	1	2	3	4
Effect_1	-4.946** (2.122)	-8.010*** (2.524)	0.000454 (0.000788)	0.00151*** (0.000396)
Effect_2	-10.00*** (1.727)	-6.050** (2.909)	0.0486*** (0.00950)	0.157*** (0.0233)
Effect_3	-5.426** (2.373)	-5.350 (3.327)	0.0348*** (0.00918)	0.0793*** (0.0180)
Effect_4	-6.026*** (1.907)	1.276 (3.376)	0.0215** (0.00896)	0.0728*** (0.0170)
Effect_5	-5.252** (2.215)	-1.214 (3.002)	-0.00152 (0.00817)	0.0399*** (0.0127)
Effect_6	10.62** (4.236)	0.394 (3.063)	-0.00199 (0.00809)	0.0375*** (0.0124)
Placebo_1	14.38*** (4.646)	-2.126 (2.332)	0.0000123 (0.0000123)	0.00443 (0.00501)
Placebo_2	-0.134 (2.071)	2.981 (2.729)	0.000309 (0.000309)	0.0103 (0.00715)
Placebo_3	4.268 (3.120)	4.768* (2.714)	0.000353 (0.000353)	0.0224** (0.0106)
Av_tot_eff	-14.56** (6.874)	-17.87 (13.63)	0.0705** (0.0279)	0.366*** (0.0639)
Courtroom fixed effects	✓	✓	✓	✓
Month-year fixed effects	✓	✓	✓	✓

Notes: Standard errors clustered by courtroom. * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$. The analyses in this table employ the dynamic difference-in-difference estimator due to De Chaisemartin and d'Haultfoeuille (2024) and correspond to the graphs presented in Figure 2. See text for details.

Table 13. Transfers reduce courtroom productivity and increase judge vacancies (two-way fixed effects estimator)

Dependent variable:	Number of cases decided		Court vacant(0/1)	
Treatment variable:	Any transfers	Retirement transfers	Any transfers	Retirement transfers
	1	2	3	4
Effect_1	-14.97*** (1.581)	-12.00*** (3.255)	0.0259*** (0.00284)	0.102*** (0.0210)
Effect_2	-3.807** (1.817)	-8.240** (3.459)	0.0257*** (0.00302)	0.0457*** (0.0162)
Effect_3	-8.919*** (1.086)	-3.812 (3.276)	0.0169*** (0.00305)	0.0486*** (0.0170)
Effect_4	-8.268*** (1.617)	0.0365 (3.372)	-0.00240 (0.00279)	0.0204 (0.0148)
Effect_5	0.624 (1.488)	-3.140 (2.762)	0.000160 (0.00277)	0.0181 (0.0136)
Effect_6	-3.874** (1.537)	0.230 (3.505)	0.000992 (0.00298)	0.0144 (0.0139)
Placebo_1	-6.912*** (1.289)	-5.761* (3.498)	0.0396*** (0.00283)	-0.0190*** (0.00590)
Placebo_2	3.390** (1.577)	-7.070*** (2.469)	0.0389*** (0.00282)	-0.0115* (0.00694)
Placebo_3	-3.961*** (1.049)	1.661 (2.691)	0.0151*** (0.00252)	-0.00537 (0.00717)
Observations	83319	83319	83319	83319
Adjusted R-squared	0.38	0.37	0.35	0.35
Dependent variable mean	49.50	49.50	0.06	0.06
Courtroom fixed effects	✓	✓	✓	✓
Month-year fixed effects	✓	✓	✓	✓

Notes: Standard errors clustered by courtroom. * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$. See text for details.

Table 14. Transfers reduce the chances of a case being decided (controlling for collateral transfers separately)

	Case decided by end-2021 (0/1)				Judge vacancy (0/1)	No. of vacant spells	No. of hearings
	1	2	3	4	5	6	7
Panel A:							
Number of transfers	-0.0606*** (0.00152)	-0.0577*** (0.00182)	-0.0596*** (0.00184)	-0.0642*** (0.00170)	0.0117*** (0.000599)	0.0292*** (0.00153)	2.528*** (0.0533)
Observations	615723	615723	615609	614889	614889	614889	568184
Adjusted <i>R</i> -squared	0.37	0.41	0.55	0.58	0.43	0.47	0.57
Panel B:							
Number of retirement transfers	-0.0685*** (0.0141)	-0.0605*** (0.0129)	-0.0809*** (0.0113)	-0.0863*** (0.0106)	0.0269*** (0.00718)	0.0493*** (0.0145)	4.705*** (0.341)
Number of collateral transfers	0.0179** (0.00817)	0.00927 (0.00816)	0.00299 (0.00801)	-0.000664 (0.00756)	0.000846 (0.00314)	0.0164* (0.00992)	3.286*** (0.417)
Number of other transfers	-0.0661*** (0.00154)	-0.0628*** (0.00184)	-0.0639*** (0.00186)	-0.0683*** (0.00181)	0.0121*** (0.000675)	0.0297*** (0.00165)	2.421*** (0.0518)
Observations	615723	615723	615609	614889	614889	614889	568184
Adjusted <i>R</i> -squared	0.39	0.42	0.55	0.58	0.43	0.47	0.57
Dependent variable mean	0.77	0.77	0.77	0.77	0.08	0.11	11.61
Case-specific controls	✓	✓	✓	✓	✓	✓	✓
Case type fixed effects	✓	✓	✓	✓	✓	✓	✓
Courtroom fixed effects							
Case type X courtroom fixed effects				✓	✓	✓	✓
Filing month-year fixed effects			✓	✓	✓	✓	✓

Notes: The dependent variable is an indicator for whether a case was decided; the independent variable is the number of transfers.

Case-specific controls are indicators for the acts under which cases are filed, variables for the number of acts and sections to which cases refer, and indicators for the gender of the parties and whether they are the government. Standard errors clustered by courtroom for regressions in columns 1–3; standard errors are clustered by case type X courtroom for the regressions in columns 4–7. * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$. See text for details.

Table 15. Transfers reduce the chances of a case being decided, particularly in the early years

Case decided (0/1) and Number of transfers measured:	1 year since filing 1	2 years since filing 2	3 years since filing 3
Panel A:			
Number of transfers	-0.0516*** (0.00174)	-0.0518*** (0.00128)	-0.0471*** (0.00107)
Observations	618947	618947	618947
Adjusted <i>R</i> -squared	0.38	0.37	0.40
Panel B:			
Number of retirement transfers	-0.102*** (0.00900)	-0.104*** (0.00893)	-0.0838*** (0.00884)
Number of other transfers	-0.0498*** (0.00170)	-0.0503*** (0.00129)	-0.0461*** (0.00109)
Observations	618947	618947	618947
Adjusted <i>R</i> -squared	0.38	0.37	0.40
Dependent variable mean	0.62	0.71	0.75
Case-specific controls	✓	✓	✓
Case type X courtroom fixed effects	✓	✓	✓
Filing month-year fixed effects	✓	✓	✓

Notes: The dependent variable is an indicator for whether a case was decided; the independent variable is transfers. Case-specific controls are indicators for the acts under which cases are filed, variables for the number of acts and sections to which cases refer, and indicators for the gender of the parties and whether they are the government. Standard errors are clustered by case type X courtroom. * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$. See text for details.

Table 16. Robustness tests: Transfers reduce the chances of a case being decided

Transfers specified as:	Count 1	Dummy 2	Log 3	Winsorized 4
Panel A:				
Number of transfers	-0.0642*** (0.00279)	-0.411*** (0.00916)	-0.387*** (0.00480)	-0.116*** (0.00147)
Observations	614886	614889	614889	614889
Adjusted <i>R</i> -squared	0.58	0.49	0.67	0.68
Panel B:				
Number of retirement transfers	-0.0557*** (0.0132)	-0.228*** (0.0182)	-0.128*** (0.0157)	-0.0631*** (0.00883)
Number of other transfers	-0.0644*** (0.00290)	-0.400*** (0.00918)	-0.383*** (0.00494)	-0.115*** (0.00153)
Observations	614886	614889	614889	614889
Adjusted <i>R</i> -squared	0.58	0.50	0.67	0.68
Mean dependent variable	0.77	0.77	0.77	0.77

Notes: The dependent variable is an indicator for whether a case was decided; the independent variable is transfers, specified as a count (column 1; this is the same specification as in Table 3 but with standard errors clustered at the court rather than by case type X courtroom), a dummy variable (column 2), logged (column 3) and winsorized (column 4). Case-specific controls are indicators for the acts under which cases are filed, variables for the number of acts and sections to which cases refer, and indicators for the gender of the parties and whether they are the government. Standard errors in columns 2–4 are clustered by case type X courtroom. * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$. See text for details.

Table 17. Robustness test: Transfers increase the time to decision for decided cases

	Time to decision (years)			
	1	2	3	4
Panel A:				
Number of transfers	0.259*** (0.00607)	0.197*** (0.00556)	0.202*** (0.00545)	0.216*** (0.00452)
Observations	537725	537725	537609	536890
Adjusted <i>R</i> -squared	0.53	0.62	0.70	0.74
Panel B:				
Number of retirement transfers	0.0741* (0.0445)	0.0495 (0.0382)	0.134*** (0.0316)	0.222*** (0.0257)
Number of other transfers	0.263*** (0.00604)	0.201*** (0.00556)	0.204*** (0.00549)	0.216*** (0.00460)
Observations	537725	537725	537609	536890
Adjusted <i>R</i> -squared	0.53	0.62	0.70	0.74
Dependent variable mean	0.95	0.95	0.95	0.94
Case-specific controls		✓	✓	✓
Case type fixed effects		✓	✓	
Courtroom fixed effects			✓	
Case type X courtroom fixed effects				✓
Filing month-year fixed effects			✓	✓

Notes: The dependent variable is the years to decision; the independent variable is the number of transfers. Case-specific controls are indicators for the acts under which cases are filed, variables for the number of acts and sections to which cases refer, and indicators for the gender of the parties and whether they are the government. Standard errors clustered by courtroom for regressions in columns 1–3; standard errors are clustered by case type X courtroom for the regressions in column 4. * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$. See text for details.

Table 18. External validity: Transfers are associated with a decreased probability of a case being decided in all states

	Time to decision (years)			
	1	2	3	4
At least one transfer	1.639*** (0.0736)	1.502*** (0.0712)	1.402*** (0.0766)	
At least one transfer in Uttar Pradesh				1.280*** (0.0145)
At least one transfer in Maharashtra				1.841*** (0.0185)
At least one transfer in Bihar				0.652*** (0.0140)
At least one transfer in West Bengal				1.246*** (0.00850)
At least one transfer in Madhya Pradesh				1.656*** (0.0135)
At least one transfer in Tamil Nadu				1.591*** (0.0212)
At least one transfer in Rajasthan				1.519*** (0.0127)
At least one transfer in Karnataka				1.398*** (0.00869)
At least one transfer in Gujarat				1.117*** (0.00458)
At least one transfer in Andhra Pradesh				1.313*** (0.0138)
At least one transfer in Odisha				1.418*** (0.0208)
At least one transfer in Telangana				1.414*** (0.0120)
At least one transfer in Kerala				1.213*** (0.0246)
At least one transfer in Jharkhand				1.505*** (0.0190)
At least one transfer in Punjab				1.181*** (0.0128)
Observations	5597074	5596514	5596514	5596514
Adjusted R-squared	0.43	0.54	0.62	0.60
Dependent variable mean	0.71	0.71	0.71	0.71
Courtroom fixed effects		✓	✓	✓
Filing month-year fixed effects			✓	✓

Notes: The independent variables are indicators for whether cases experienced one or more transfers. Standard errors clustered by courtroom. * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$. See text for details.